United Nations A/79/PV.29

General Assembly

Seventy-ninth session

Official Records

29th plenary meeting
Tuesday, 29 October 2024, 3 p.m.
New York

President: Mr. Yang .....(Cameroon)

In the absence of the President, Mr. Agyeman (Ghana), Vice-President, took the Chair.

The meeting was called to order at 3 p.m.

Agenda item 74 (*continued*)

Report of the International Criminal Court

Note by the Secretary-General (A/79/198)

Reports of the Secretary-General (A/79/197 and A/79/199)

Draft resolution (A/79/L.8)

Mr. Kiboino (Kenya): Kenya's delegation aligns itself with the statement delivered by the representative of Uganda on behalf of the African States Parties to the Rome Statute (see A/79/PV.26). I will add some remarks in our national capacity.

We congratulate Judge Tomoko Akane on her election as President of the International Criminal Court (ICC), and we acknowledge the annual report of the Court (see A/79/198), as presented to the Assembly. We commend the Court for its work, as reflected in the report.

My delegation takes note of the conclusion of the investigation phase with respect to the situation in Kenya and that no additional cases into alleged criminal responsibility of other persons will be pursued, as indicated in the report. Kenya, together with like-minded States, played a significant role in the negotiation and entry into force of the Rome Statute that established the ICC. We did so because we believe in the importance of justice and accountability for the most serious crimes under international law and the need to end impunity.

Kenya also emphasizes the primary responsibility of States in the promotion of justice and accountability, as the first line of ensuring a peaceful and just coexistence governed by the rule of law. We believe that the Court should be a useful tool in working towards justice and accountability in an efficient, impartial and independent manner. This can be accomplished only by ensuring that the Court is structurally and

This record contains the text of speeches delivered in English and of the translation of speeches delivered in other languages. Corrections should be submitted to the original languages only. They should be incorporated in a copy of the record and sent under the signature of a member of the delegation concerned to the Chief of the Verbatim Reporting Service, room AB-0928 (verbatimrecords@un.org). Corrected records will be reissued electronically on the Official Document System of the United Nations (http://documents.un.org).

24-19856 (E)

operationally sound and by retaining the Court as a court of last resort, as originally intended. Its work, therefore, must be solidly based on the principle of complementarity with national courts. This calls for building the national capacity of Member States in order to be able to offer the dependable first recourse for accountability for the most serious and heinous international crimes.

For the Court to gain universal trust and confidence in its work, it must invest more in ensuring that its face is similarly universal through equitable representation — not only in its bench but also throughout its structures. We note that the question of regional representation is one that remains to be answered. Equitable geographical representation must be seen in all the organs and subsidiary bodies of the Court. Kenya also urges the Court to reorganize its priorities and employ correspondent cost-cutting measures to keep within its mandate, without imposing an unnecessary burden on States Parties.

Finally, Kenya looks forward to further deliberations on critical issues under the report and the work of the Court during the forthcoming Assembly of States Parties in December. We also look forward to the upcoming Review Conference in 2025, which will cover the crime of aggression, among other key legal issues.

Mr. Korbieh (Ghana): My delegation thanks Judge Tomoko Akane, President of the International Criminal Court (ICC), for her presentation of the Court's report on activities over the period from 2023 to 2024 (see A/79/198).

We align ourselves with the statement delivered by the representative of Uganda on behalf of the African States Parties to the Rome Statute of the International Criminal Court (see A/79/PV.26).

Ghana reaffirms its respect for the fundamental values of the Rome Statute and recognizes the Court's importance as a mechanism for addressing crimes of impunity and, particularly, for the role it serves as a deterrent for potential perpetrators of such crimes. We reiterate that our collective adherence to the values of the Court is essential to the administration of international criminal justice and the maintenance of international peace and security.

Ghana also notes the importance of an independent court and avers that to achieve this, the Court's activities should be undertaken in a fair, impartial and transparent manner, taking into account the rights and obligations of all States Parties. To Ghana, this is crucial, particularly as during the past 25 years we have witnessed some States Parties withdrawing from the Rome Statute, with the explanation that the Court has not been fair, impartial or transparent and that it has focused on situations in developing countries. In this respect, it is gratifying to note that the Court has extended its activities beyond the familiar areas and now reports on situations and cases of alleged atrocity crimes in other regions.

Ghana continues to stress the key pillars and principles underlying the Rome Statute, namely, the complementarity, cooperation, independence and impartiality of the Court. We wish to emphasize our firm belief in the need to effectively operationalize the principle of complementarity as a key instrument to ensure the full realization of the objectives of the Rome Statute. To that end, building the domestic capacity of judges, prosecutors and other key officials in the domestic judicial system of States Parties is important to ensure adequate capacity to prosecute and punish crimes of impunity. Ghana therefore encourages enhanced technical assistance initiatives among States Parties in support of the effective implementation of the Rome Statute.

In assessing the ICC's collaboration with the Security Council and on the issue of referral of cases by the Council to the Court, we remain concerned about the

objective application of the provisions in articles 12 and 13 of the Rome Statute, on account of the political application of the veto by some permanent members of the Security Council. We urge further discussions within the Security Council on how atrocity crimes that impact international peace and security may be considered and voluntary limitations that Council members should agree on in such cases.

Ghana welcomes the administration of restorative justice through the Trust Fund for Victims of the Rome Statute crimes. We encourage its sustenance to enable the representation and involvement of victims in the proceedings to be covered, for their own stories to be told while confronting their molesters or accused, as well as the payment of reparations to victims of crime, among others. Ghana commends States Parties that make voluntary contributions to the Fund and calls on States that are capable of contributing to the Fund to do so. It is worth noting that approximately 24,000 individuals directly benefited from the programmes implemented by the Court in the 2023–2024 period.

In closing, Ghana would like to underscore that overall the establishment of the Court has contributed to deterring potential culprits from committing atrocity crimes with impunity and has thus made an impact on the maintenance of international peace and security. However, with the increasing attempts in recent years by many powerful and mid-sized States to debase the pillars of international law and international justice, more support is required from all States Parties to promote the work of Court and to insulate its workings from narrow interests and politicization.

Finally, Ghana has sponsored the draft resolution on the report of the ICC to the United Nations and will vote in favour.

Ms. Schwalger (New Zealand): We thank President Akane for the report (see A/79/198) of the International Criminal Court (ICC) and welcome the opportunity to discuss the International Criminal Court's contribution to the international rule of law and its relationship with the United Nations. As the first and only permanent international criminal court, New Zealand considers the Court to be a central pillar in the international rules-based system and our framework for international criminal justice. The relevance of the ICC is unquestioned. States are joining the Rome Statute because they know it matters and helps. Armenia and Ukraine have recently joined, for example.

We commend the Court's substantial investigatory work accomplished this year concerning conflicts and alleged crimes across four continents. The cooperation, assistance and support of all States Parties remain essential to the Court's operation. States Parties are required to cooperate with the Court, including by facilitating the arrest and surrender to the Court of perpetrators of the most serious crimes of concern.

New Zealand also reiterates its call on all States, whether or not they are Parties to the Rome Statute, to support the Court's important work towards international justice and accountability. New Zealand's focus has been on ensuring that the Court is sufficiently resourced to conduct its investigations and prosecutions independently, impartially and securely. This is particularly important at a time when the Court faces a number of threats. It is unacceptable that some countries have issued arrest warrants for elected officials and personnel of the Court. In June, New Zealand endorsed a joint statement reaffirming our shared commitment to preserving the Court's integrity from political interference and pressure. New Zealand stands by those statements.

Moreover, it is unacceptable that the Court has experienced cyberattacks and other attempts at infiltration and intimidation. As part of our support for the Court as an independent and impartial judicial institution, New Zealand provided support for the Court's Special Fund for Security. Ensuring the Court is safe, secure and resilient is critical to ensuring that the work to end impunity continues at pace, and we thank

the Netherlands for its consistent support as the host State. It is no secret that New Zealand also strongly supports the work of the Trust Fund for Victims, for good reason. For many in situation countries, the Trust Fund for Victims is the face and the hands through which individuals see the Court and see international justice. We are pleased to see that more than 16,000 victims have participated in cases before the Court. New Zealand stands by the Trust Fund for Victims and its important work, including through voluntary contributions, and encourages others to consider what more they can do in this regard.

We are encouraged by the support for the Court already expressed in this room. New Zealand calls on all countries that have not yet done so to ratify or accede to the Rome Statute and strongly support universal membership of the Rome Statute, which will help to end impunity and ensure that all victims have access to justice.

Mr. Mukongo (Democratic Republic of the Congo) (*spoke in French*): My delegation has taken note of the annual report of the International Criminal Court (ICC), contained in document A/79/198, as submitted by Judge Tomoko Akane, President of the Court. The report shows that, despite conducting many of its activities in very difficult operational environments and precarious security situations in active conflict zones, the International Criminal Court has never been sought out to this degree, whether in investigations, preliminary procedures, trials, appeals or reparation programmes for victims.

Before I come to the main point, I wish to take this opportunity to welcome, on behalf of my delegation and on my own behalf, the announcement made on 14 October by Mr. Karim Khan, Prosecutor of the International Criminal Court, of his decision to reopen his investigations into the Democratic Republic of the Congo, and in which he stipulated that said investigations will prioritize alleged crimes under the Rome Statute committed in the province of North Kivu since January 2022. It should be noted that this is also the very first time that an international court will seriously examine massive, serious and flagrant violations of human rights and international humanitarian law, resulting from acts of armed aggression perpetrated on the territory of the Democratic Republic of the Congo.

Returning to the report, the document indicates that the Court reached a historic milestone when the Trust Fund for Victims carried out the reparations in the Katanga case. It is also interesting to note that the Fund is carrying out other reparation orders and other programmes for victims, providing them with medical treatment, psychological rehabilitation, socioeconomic support and educational opportunities, as well as organizing peacebuilding activities that directly benefited approximately 24,000 people in 2023.

It is important to recall that the situation in the Democratic Republic of the Congo was voluntarily referred to the International Criminal Court by the authorities, acting on behalf of a devastated people in an aggressed country, where what some rightly called the “first African world war” took place, and where there is an ongoing illegal occupation of parts of North Kivu province by the Rwandan army, against a backdrop of a chaotic humanitarian situation marked by massacres of civilians, the most heinous atrocities, sexual violence against women, the recruitment of child soldiers and massive violations of human rights and international humanitarian law, as well as the illegal exploitation of the country’s natural resources.

The International Criminal Court was established precisely to address these types of situations. Hence, the wording of the Rome Statute, which some regard as mere theory, reflects a reality that the Congolese people, particularly those in the eastern part of the country, have endured and continue to endure. War and all forms of violence that ignore the dignity and sanctity of human beings have no nationality.

This reality, which some want to confine to the Democratic Republic of the Congo for shirking its obligations and responsibilities, is intolerable and unacceptable. This concerns all of us, and cooperation with the International Criminal Court must be the bedrock.

In terms of cooperation, we will never tire of saying that the Democratic Republic of the Congo was the very first State Party to cooperate meaningfully with the Court. My country's cooperative actions can certainly serve as a model of cooperation with the International Criminal Court, and a number of legal instruments attest to this.

The Democratic Republic of the Congo did not wait for the entry into force of the Rome Statute to ratify it. We ratified it on 30 March 2002, more than a quarter of a year before its entry into force.

On 3 March 2004, the Democratic Republic of the Congo took the initiative of referring the situation to the International Criminal Court. On 6 October 2004, we signed a legal cooperation agreement with the Court. We also concluded a legal assistance agreement with the United Nations Organization Stabilization Mission in the Democratic Republic of the Congo at the time and the International Criminal Court.

In accordance with the procedures before the Court, the Democratic Republic of the Congo has, on three occasions, correctly executed arrest warrants issued by the International Criminal Court concerning its nationals. As can be seen, the Democratic Republic of the Congo is convinced that peace and justice are complementary. We have seen the critical role of justice as a factor of social harmony, national reconciliation, peace and security.

The annual report of the International Criminal Court to the United Nations before the plenary also underscores the growing importance of the work of the Court and the Rome Statute at the international level. It highlights very significant progress in the Court's work, with the start of trials in some situations, the confirmation of charges in others and the opening of new investigations in others still. In that regard, we wish to take this opportunity to highlight our interest in seeing the holding of the "in situ" trials, which we see as a long-awaited opportunity to bring some moral satisfaction to the victims of the crimes in question and to deter potential repeat offenders. This progress in international criminal justice is taking place amid tremendous challenges facing the Court, the most significant of which is non-cooperation.

It should be noted in this regard that the perception of the Court has changed, even among certain States that had previously shown strong support for it. There is a sense of injustice and a perception of inequity that is gradually taking hold in the minds of some Africans who believe international justice has become a tool for exerting pressure on African leaders. In this regard, it is important for the Court to establish mechanisms that can counter such perceptions, which can undermine the reputation of the Court and compromise its success, even though it remains clear that more than half of the Member States of the universal Organization have joined the Court less than five years after its inception.

But it is equally important for the Court to examine its own operations, reflect on its working methods and become more professional and less political, as politics and justice do not necessarily go well together. In order to restore the climate of trust that has deteriorated between the Court and the African Union over the past five years some solutions are needed, including enhancing the ongoing dialogue between the African Union and the International Criminal Court; fully implementing the principle of complementarity in African countries, given that it is the primary responsibility of

each State to investigate and prosecute the gravest crimes of international concern; and taking advantage of the possibility of making the most of the initiative of expanding the mandate of the African Court on Human and Peoples' Rights to incorporate criminal jurisdiction to try international crimes.

By way of conclusion, my delegation wishes to welcome Armenia as a new State Party, which joined the ICC on 14 November 2023, bringing the number of States Parties to 124. While reiterating our willingness to ensure respect for the integrity of the Statute, I wish once again to invite those States that have not yet joined the International Criminal Court mechanism to do so, so that together we can contribute to the universalization of the fight against impunity.

Ms. Flores Soto (El Salvador) (*spoke in Spanish*): The global fight against impunity for the most serious crimes of concern to the entire international community represents a growing challenge, which the International Criminal Court, established under the Rome Statute, and its States Parties must tackle. Faithful to its commitment to the international justice system, the Republic of El Salvador reiterates its firm condemnation of any criminal action that violates the principles of peaceful coexistence within the international community, including crimes against humanity and war crimes. Such crimes, owing to their scope and appalling nature, completely disregard human dignity and fundamental rights. Strengthening preventive measures at the national level, as well as efforts to promote international cooperation to facilitate access to justice, are key to this endeavour.

Today my delegation renews its full support for the International Criminal Court as an institution that is permanent, independent and has a universal vocation, which, through the exercise of, and strict respect for, the principle of complementarity with national jurisdictions, works to eliminate impunity when such crimes are committed. In this respect, we express our trust that the Court, fully committed to the principles and norms established under the Rome Statute, will continue to exercise its functions with the necessary objectivity, impartiality and discipline to preserve its legitimacy and credibility and to strengthen international justice.

On this occasion, my delegation would like to express its appreciation for the presentation of the report of the International Criminal Court on its activities in the 2023–2024 period (see A/79/198). In that regard, I would like to underscore a few key aspects that demonstrate both significant achievements and concerns.

First, I would like to mention cybersecurity and the fight against external threats. A topic of deep concern is the Court's growing vulnerability in the light of the unprecedented cyberattacks and attacks that are exposing the institution to risks and attempts to undermine its mandate and stability. These challenges highlight the urgent need to strengthen security and cyberdefence mechanisms. It is crucial that the Court take the necessary measures and efficiently employ the allocated resources to effectively address these external threats, in close collaboration with States and taking into account the capabilities of its States Parties in order to preserve the institution's integrity.

Secondly, I would like to highlight challenges in detaining those who are criminally responsible. The detention of individuals for whom an arrest order has been issued continues to be a significant challenge for the Court, with 20 people who still have yet to be apprehended. My delegation recognizes the cooperation and assistance thus far by States Parties to the International Criminal Court and expresses its hope that said support will be maintained and enhanced in accordance with the principles that guide our shared obligations.

Thirdly, I note the impact on victims and reparations. Despite the operational challenges, we celebrate the significant achievement of the Trust Fund for Victims,

which is the culmination of the implementation of the programme of reparations marked by a closing ceremony in Bunia, Democratic Republic of the Congo. We also acknowledge the Fund's important work in the development of different programmes to benefit victims, including through medical care, psychological rehabilitation, socioeconomic support, access to education and peacebuilding activities. These initiatives had a positive impact on approximately 24,000 people in 2023. Even though significant progress has been made, my delegation recognizes the complexity of the process to identify and include victims in these programmes. It is crucial that support for this effort continue in order to ensure that reparations reach those who need it most.

Fourthly, there must be cooperation between the International Criminal Court and the United Nations and its Member States. Cooperation between the Court and the United Nations has been crucial for promoting the Court's investigations and its judicial activities, as well as those of the Assembly of States Parties, and for ensuring logistical support on the ground. We applaud the joint efforts of the liaison office and the Office of Legal Affairs of the United Nations, and we encourage the Office to bolster their personnel and resources in order to strengthen cooperation with the activities of the Court, including the holding of forums of International Criminal Court focal points across the United Nations system, the coordination of New York working group meetings in the Assembly of States Parties and the provision of logistical support by the United Nations on the ground.

The International Criminal Court has shown its commitment to combating impunity and pursuing justice for victims, yet it faces significant challenges that require our attention and support. My delegation would like to emphasize the importance of enhancing the capacity-building of States that are part of the Assembly established under the Rome Statute and, by doing so, of contributing to the effective implementation of this important instrument and its principles.

I would like to conclude by reiterating my country's commitment to the work of the Court, as the highest international criminal tribunal. Only through such efforts can we guarantee justice, accountability and the protection of human rights in the global sphere.

Mr. Babo Soares (Timor-Leste): My delegation would like to start by congratulating Judge Tomoko Akane on her election as President of the International Criminal Court (ICC), along with the other newly elected judges. We appreciate her comprehensive report (see A/79/198), presented yesterday (see A/79/PV.26), showcasing the ICC's efforts to address serious international crimes. We welcome the significant milestones in investigations, trials and reparations, as well as the priority given to victims' rights.

The recent reparations order issued by Trial Chamber IX, awarding the more than 49,000 victims of Dominic Ongwen's crimes over $52 million, demonstrates the ICC's commitment to justice. We hope that the victims are swiftly identified to benefit from this judgment. We also commend the Court on completing reparations in the *Prosecutor v. Germain Katanga* case.

For international justice to prevail, the ICC's independence, impartiality and credibility must be preserved. My delegation urges all States to refrain from pressuring the Court and its judges, prosecutors or staff so as to ensure accountability for the most heinous crimes.

In today's world, faced with unprecedented challenges, the ICC symbolizes our collective resolve to uphold the principles of accountability and human dignity. We must strengthen the legal principles outlined in the Rome Statute and its covenants.

International criminal justice and accountability are inseparable from the international rules-based order, and Timor-Leste welcomes the role the ICC plays within the principle of complementarity. To support the Court, we call for international cooperation and the necessary resources and political will to enforce decisions and arrest warrants. We encourage non-signatory States to consider joining the Rome Statute. In that regard, we welcome Armenia's accession and Ukraine's ratification.

The ICC's efforts to ensure gender balance and diversity are crucial. Diversity enhances the Court's ability to administer justice in diverse cultural and gender contexts. Timor-Leste encourages continued inclusivity expansion, reflecting the global community's diversity in leadership, administration and outreach. We acknowledge the vital dialogue and cooperation between the ICC and the United Nations. Collaboration is essential, particularly in fragile and conflict-affected areas where United Nations agencies and peacekeeping operations support the Court's ground operations. We applaud the United Nations for facilitating the ICC's work and encourage further coordination to strengthen this partnership.

Mr. Zoumanigui (Guinea) (*spoke in French*): At the outset, my delegation would like to extend its gratitude to you, Mr. President, for your stewardship of our work.

We align ourselves with the statement delivered by the representative of the Republic of Uganda on behalf of the Group of African States (see A/79/PV.26), and we wish to deliver the following statement in our national capacity.

My country, the Republic of Guinea, reaffirms its commitment to the International Criminal Court and to the values and the ideals that it upholds, specifically in the fight against impunity and the pursuit of criminals, inter alia, to ensure that they are held accountable in the appropriate forum.

My delegation welcomes the ratification of the Rome Statute by Armenia on 11 November 2023, thereby making it the 124th State Party. We thank Judge Tomoko Akane, President of the Court, for presenting the report of the Court, contained in document A/79/198, which covers the Court's activities in 2023 and 2024. We welcome the cooperation between the United Nations and the Court, in accordance with article 6 of the Relationship Agreement, which governs this cooperation.

In examining the procedures and proceedings, specifically with regard to the situations and cases, we note that a significant amount of work has been accomplished. We appreciate this momentum, which should be pursued within the framework of the principle of complementarity. The information contained in documents A/79/197 and A/79/199 is more instructive on this issue. We encourage the continuation of this cooperation.

My country underlines the importance of training, and, in this regard, we appreciate the financial support provided by certain partners, specifically the European Union and other donors, which has enabled the Court to organize 15 seminars and activities in support of efforts geared towards strengthening cooperation, complementarity and universality. We hope that this training is extended to include countries that were — or continue to be — affected by violence.

With regard to the Trust Fund for Victims, we note with appreciation the voluntary contributions received in 2024 amounting to €5.3 million from 28 Member States, representing 40 per cent of the annual revenue from voluntary contributions. These funds benefited approximately 24,000 people in 2023 through Court-ordered reparations and other programmes. In this vein, we reiterate our call for support from the international community for the operationalization of the Fund so as to ensure

reparations for victims in my country as part of the next crucial step in monitoring the process, under way in my country.

My country, which experienced a bleak period in its history on 28 September 2009, would like to benefit more from such funds. Captain Moussa Dadis Camara's announcement of his candidacy for my country's highest office in 2009 sparked protests from political leaders and civil society. The reprisals in response to these protests claimed more than 150 lives and led to sexual violence against women and girls, in particular.

As indicated in paragraph 77 of the Court's report before the Assembly, the visit of the Deputy Prosecutor to Conakry in 2024 resulted from the memorandum signed between the Republic of Guinea and the Office of the Prosecutor of the International Criminal Court, whereby the two parties agreed to cooperate closely in order to implement the principle of complementarity and ensure that the perpetrators of international crimes perpetrated in the Republic of Guinea during the events of 28 September 2009 would be held accountable.

As part of the commitments of the Republic of Guinea, as mentioned in articles 2 and 3 of the memorandum, I am pleased to point out that 13 years after the atrocities and thanks to the steadfast will of His Excellency Lieutenant General Mamadi Doumbouya, President of the Republic and Head of State, the Guinean Government, using its own funds, set up the appropriate infrastructure and organized a trial to address the tragic events of 28 September 2009 at the Conakry stadium. The verdict of the Dixinn Court of First Instance was handed down after over two years of intense work. The perpetrators of the tragedy, including a former Head of State, for the first time in our history, were brought before a national court to answer for their actions. This marked a decisive turning point in our fight against impunity.

To organize this trial, the Guinean Government mobilized significant technical, human and financial resources. More than $14 million of our own funds were disbursed by the authorities. This attests to our commitment to reshaping our society on the solid foundations of justice, truth and reconciliation, while inspiring other States to follow the same path of accountability and transparency.

The Guinean Government also established a reparations fund for the victims of the events of 28 September 2009. We wish to highlight that, to date, in addition to technical assistance from certain partners, the Republic of Guinea has received $11,000 from the Austrian consulate in Guinea. I extend my sincere thanks to this friendly country. We also wish to highlight the efforts of bilateral and multilateral partners that have continued to support us in this process, including the Office of the Prosecutor and the Office of the Special Representative of the Secretary-General on Sexual Violence in Conflict.

From this rostrum, I reiterate our call to the international community to provide meaningful support for my country. In this context, support for the remaining steps of the judicial process related to the 28 September 2009 events is critical. It is evident that the atrocities perpetrated on 28 September 2009 in the Republic of Guinea and the ensuing trials established jurisprudence and can serve as a textbook case of great interest to the international community. While the atrocities did not take place during a period of armed conflict, they do have the distinction of taking place during a period of democratization, hence the importance of learning lessons from them.

I now turn to the general policies mentioned in paragraph 109 of the report under consideration. We believe that coordination between the Office of the Prosecutor and the Offices of the Special Representative of the Secretary-General for Children and Armed Conflict and of the Special Representative of the Secretary-General on Sexual

Violence in Conflict could help to better identify the parameters related to human rights violations, specifically in periods of violence.

As mentioned earlier, during his visit to Conakry, Deputy Prosecutor Niang welcomed the progress of the trial on events related to 28 September 2009. During discussions, the Guinean authorities indicated the areas in which they needed institutional support. In this regard, the Deputy Prosecutor and the authorities agreed to strengthen cooperation and to extend this cooperation to include other key actors and partners, such as the Team of Experts on the Rule of Law and Sexual Violence in Conflict, the competent services of the Court and the Trust Fund for Victims, in order to propose an action plan to facilitate the exchange of expertise and transfer of knowledge to benefit national judicial personnel. We hope that this cooperation will be effective for the Republic of Guinea and the international community. Guinea, for its part, stands ready to fully cooperate and to continue to honour its commitments.

In conclusion, I wish to reiterate the commitment of the Republic of Guinea to the Statute of the International Criminal Court. We stand ready to cooperate meaningfully with the Court in the pursuit of its mission.

Ms. Monica (Bangladesh): We thank the President of the International Criminal Court (ICC), Judge Tomoko Akane, for presenting the Court's report (see A/79/198) on its activities during the past year. We also take this opportunity to thank the delegation of the Netherlands for facilitating the draft resolution, which we are pleased to co-sponsor, on the report of the ICC under this agenda item.

We are pleased to see that, despite numerous challenges faced by the Court and its personnel, as well as an unprecedented increase in its caseload, the ICC was able to make significant progress in performing its crucial functions during the reporting period. We thank the judges and all the personnel of the Court for their dedicated and professional services, which helped the Court to achieve the progress.

While we appreciate the achievements of the Court, we cannot but express our deep concerns about the delay in the investigation or disposal of applications in certain situations. We wish to refer in particular to the situation in the State of Palestine and the situation in Myanmar — both being of particular interest to Bangladesh.

In the situation in the State of Palestine, the Office of the Prosecutor filed applications for arrest warrants before the Pre-Trial Chamber in May. However, no arrest warrant has been issued thus far.

With the situation in Myanmar, we noted repeated announcements by the Office of the Prosecutor to prioritize the investigation, which has been pending since 2018. However, we have yet to see any concrete action by the Court to bring the perpetrators responsible for committing mass atrocity crimes against the Rohingya minorities in Myanmar. Clearly, the pace of justice seems to be too slow for the victims in these situations, compared with the pace in which irreparable harms are being inflicted on them.

The suffering of the Palestinian civilians in Gaza and the Rohingya minorities in Myanmar do not need any reminder. We believe that further delaying these processes would not only continue to embolden the perpetrators and enable them to carry out their atrocious crimes but would also deny the victims their right to justice and normalize and perpetuate their dehumanization.

The ICC was established with a mission to put an end to impunity for the perpetrators of the most serious crimes that concern the international community as a whole. No matter who the perpetrator is, the Court is expected to deliver justice and provide relief to the victims. The victims look to the Court as the only source of hope

and resilience when all international institutions responsible for their protection fail them. The Court cannot afford to fail them also.

We therefore call upon the ICC to use its authority with absolute objectivity and urgency. Otherwise, the very purpose of justice, which it is entrusted with, would become irrelevant for the victims.

We have noted that the ICC received cooperation from various States and United Nations entities during the reporting period, which we deeply appreciate. The ICC cannot function effectively without the cooperation of Member States and international organizations or when its personnel face intimidation for doing their job as international civil servants. Hence, we urge all States Parties to continue to cooperate with the ICC for effective investigation and prosecution. We also call upon the States that are not Parties to the Rome Statute to consider extending cooperation to the Court in the interest of justice. At the same time, we request the Court to expand and strengthen its outreach to the relevant States and international and regional organizations and make every effort to secure cooperation for the timely disposal of its investigative and judicial work. We also stress the importance of preserving the integrity of the Court and its personnel, who must be able to work independently without any attack or interference in any form.

In today's world, we are witnessing, on a daily basis, an unprecedented display of violations of international law and disregard for human life and dignity. The best way this unfortunate course can be reversed is by restoring trust in international law and strengthening the institutions that are responsible for upholding such law, not by abandoning the law or its custodians. Therefore, we believe it is more important than ever to strengthen the ICC and participate in the discourses that are essential for improving its functions and reinforcing its integrity and impartiality. The universalization of the Rome Statute would be a critical first step in that regard.

We welcome the new members of the ICC and call upon other States to ratify or accede to the Rome Statute. We support the crucial role of the ICC in ending impunity.

Mr. Quintana Aranguren (Colombia) (*spoke in Spanish*): First of all, I would like to thank Judge Tomoko Akane and wish her every success in her term as President of the International Criminal Court (ICC), which began at the beginning of this year.

Colombia also welcomes the annual report of the Court on its activities in 2023 and 2024 (see A/79/198), submitted in accordance with article 6 of the Relationship Agreement between the United Nations and the International Criminal Court. The report reflects the Court's commitment to justice and its adaptability in a changing international context.

Throughout this year, the Court has faced important challenges but has shown a remarkable capacity to respond, reflecting its importance in the global sphere. The proactive policies, such as positive complementarity, highlight its important role in the promotion of justice. In this context, it is important to highlight that Colombia and the ICC have enjoyed a very close relationship, which has taken shape with the signing of cooperation agreements and a work plan. As a result, the Office of the Prosecutor has maintained an ongoing relationship of mutual support with the institutions in charge of delivering justice in Colombia, both in the regular justice system and the transitional justice system, which is a genuine example for the rest of the world.

This cooperation is in line with the Office of the Prosecutor's innovative policy of positive complementarity, which aims to strengthen the capacity of States to investigate and prosecute international crimes, ensuring that justice is delivered at the national level. Those signed agreements include the commitment to keep the

Prosecutor informed of progress in investigations and trials in Colombia, as well as strengthening the exchange of lessons learned and good practices with our judicial institution.

Within the framework of this successful relationship, at the beginning of October, Colombia presented to the Office of the Prosecutor a report detailing progress in this area from 2022 to 2024. The report, prepared in conjunction with relevant entities, including the jurisdictional branch, shows Colombia's legal and political will to investigate and prosecute the crimes recognized in the Rome Statute, as well as the ability of its judicial entities to do so. Furthermore, it reflects the interest of my country in continuing the constructive relationship forged with the Office of the Prosecutor, in compliance with the commitments made.

Colombia's relations with the Court have also been strengthened through visits of its officials to the country. For example, in April 2024, Prosecutor Khan made a second visit to Colombia with a view to addressing the case of Colombia as an example of the policy of positive complementarity. During the visit, an agreement was signed to establish a permanent office of the International Criminal Court on Colombian territory with a view to facilitating direct cooperation between the country's judicial institutions and the Court. The establishment of the office will make it possible to continue to strengthen the capacity of the national justice systems to investigate and prosecute international crimes, contributing to a more solid judicial system in Colombia and making it an international reference in transitional justice and peacebuilding mechanisms.

In November 2025, we will receive the Registrar of the Court and the Executive Director of the Trust Fund for Victims. This visit will also be key to strengthening international outreach and coordination between the Court and institutions in Colombia, in a new stage of our relationship driven by the judicial diplomacy strategy of our Ministry for Foreign Affairs.

Through this engagement, the Colombian authorities have made significant strides. We are convinced that this new stage of cooperation between Colombia and the Court can serve as an innovative model for other countries in similar contexts that are ready and trained to prosecute crimes of international importance.

As a sign of our support for the Court and its jurisdiction, we presented observations with respect to the situation in the State of Palestine, in accordance with rule 103 of the Court's Rules of Procedure and Evidence and the decision of 22 July of the Pre-Trial Chamber I of the Court. This is because we are convinced that the Court is fully competent to hear this situation and is empowered to exercise this jurisdiction with respect to crimes against humanity and war crimes committed in the territory of Palestine, a State Party to the Rome Statute.

Furthermore, we would like to reiterate that Colombia is committed to equitable geographic representation and gender equity in all the organs of the Court and in the Assembly of States Parties, including its Bureau.

Lastly, I would like to join the other delegations that have expressed their rejection of unilateral measures of dubious legality that could affect the impartiality and the functioning of the Court. It is crucial that all States, including States that have not yet ratified the Rome Statue, respect the independence of the judges and judicial officials, without whom the Court will not be able to exercise the duties entrusted to it, and continue to work hand in hand with States to end impunity for the most serious crimes of international concern. For all those reasons, Colombia, a strategic ally committed to the future of the International Criminal Court, has decided to co-sponsor the draft resolution being discussed today (draft resolution A/79/L.8). We reiterate our strong support for the Court and its institutions and officials.

Ms. Zabolotskaya (Russian Federation) (*spoke in Russian*): Today the General Assembly has been forced to spend time considering the issue of the so-called International Criminal Court (ICC) and the draft resolution on that subject (draft resolution A/79/L.8).

The complimentary tone of the document is long outdated and does not reflect the real state of affairs. The ICC has long been synonymous with double standards, ineffectiveness and politicization. It has irrevocably lost the right to call itself an institution of justice, having transformed itself over the years into a tool of Western States for advancing geopolitical agendas. The biased and one-sided nature of the now-notorious ICC justice is clearly seen when it comes to relations between its approach to the numerous war crimes perpetrated by NATO in Afghanistan, Libya and Iraq. The ICC has consistently and diligently swept under the rug the abhorrent crimes perpetrated by its Western patrons and their satellites. The number of victims of Western aggression is estimated to be in the hundreds of thousands, but not a single ruling has been handed down, and no arrest warrants have been requested.

In this regard, we doubt that the investigation by the so-called ICC Office of the Prosecutor into crimes against the Palestinians will end any differently. The ICC completely failed to investigate the situations in Darfur and Libya, which the Security Council referred to it at the request of Western countries. In Libya, the ICC used fake news, which NATO countries also used, in an attempt to justify their aggression against that country. After fulfilling the political orders of its patrons, the ICC completely lost interest in the Libyan dossier, as was the case with the Darfur dossier before it and switched to a sluggish imitation of work, sending empty reports year after to year to the Security Council with new excuses for its inaction, including constant complaints about an alleged lack of funds.

It should be noted that this pseudo-judicial body has an annual budget of $200 million. This is seven times more than the budget of the main judicial organ of the United Nations, the International Court of Justice. This demonstrates the complete dysfunctionality and utter inefficiency of this body.

It is also worth noting the opaque mechanism of so-called voluntary contributions to the ICC, which amount to millions of dollars. There is also a mechanism for assisting the Court through the secondment of staff for specific investigations that are of interest to the collective West. Essentially, this pseudo-court is a mere smokescreen for trials that are commissioned, paid for and conducted by the United States and its satellites.

Washington's position is particularly indicative of the fact that the ICC has nothing to do with the administration of justice. The United States is not a Party to the Rome Statute and, over the years, has adopted numerous domestic laws that prohibit cooperation with the ICC and imposed numerous restrictions on cooperation with it and its officials. This includes a law known among international lawyers as the Hague Invasion Act, which is still valid. It allows for the use of any means, including the use of force, to release Americans and allies detained by the ICC. In 2022, the United States provided for exceptions to these laws for working with ICC only on the Ukrainian issue. We have not seen similar exceptions regarding the investigation of crimes against Palestinians, for example. The United States is not interested in justice. The ICC, for it, is a useful and obedient puppet.

Ukraine's ratification of the Rome Statute with the caveat that over the course of seven years the ICC will not have jurisdiction regarding war crimes perpetrated by citizens of Ukraine has become a real theatre of the absurd. Note that the military personnel, fighters and mercenaries under the control of the Kyiv regime have already

perpetrated a multitude of documented war crimes. We can be sure that they will continue to do so because the West has effectively given its vassal State carte blanche.

The conscientious interpretation of article 124 of the Rome Statute does not, in principle, allow for such carte blanche. Even for the ICC, Kyiv's approach is unprecedented. Let us recall that, in 2015, the Assembly of States Parties to the ICC adopted an amendment by consensus to eliminate article 124. This amendment was already ratified by 22 European countries. However, not a single of them dared to provide a proper assessment of the actions of the Kyiv regime.

On the contrary, from this rostrum we hear the welcoming of Kyiv's ratification of the Rome Statute, which is essentially a legal trick to evade accountability. So it turns out that any party to an armed conflict can follow Kyiv's example by evading its own responsibility under the Statute and using this pseudo-court as a political tool against the other party.

True justice cannot, in principle, be one-sided. The theatrical spectacle of the British Prosecutor of the ICC, who trumpeted through all the media outlets the request for arrest warrants with regard to the situation in Palestine, was intended to cover up the continuing inaction on the situation in Gaza. It is noteworthy that these arrest warrants were obstructed by the United Kingdom, the country of which Mr. Khan is a citizen. He likes to talk from this and other platforms about the fight against impunity. The United Kingdom's application for participation in the case was made possible by the Prosecutor's deliberate disclosure of information about the request for the warrants. In other cases, such announcements were never made. On the contrary, even after arrest warrants were issued, the information remained classified for years.

Let us recall that the ICC Prosecutor has been investigating the situation in Palestine for almost a decade, including all of last year, during which Gaza has been the epicentre of a humanitarian disaster. The ICC's inaction regarding Western countries and their allies stands in stark contrast to the haste regarding its opponents and once again proves that this body has nothing to do with justice.

We cannot fail to comment on the news that the ICC has launched an investigation into the so-called Prosecutor, Mr. Khan of Britain, regarding sexual misconduct. Can this person really be the head of a fair investigation into anything?

The situation with Mr. Khan is typical. It is also typical that this political institution, which calls itself a Court, attempted to make a claim against Mongolia at the Assembly of Member States of the Rome Statute. Let us try to get to the bottom of this claim. What is it about, if the country was clearly guided by the norms of international law and the provisions of the Rome Statute, including article 98, paragraph 1, which directly and unequivocally prohibits the ICC from requesting cooperation for an arrest warrant when this cooperation is inconsistent with the obligations of the requested State in the area of privileges and immunities? This is an example of strict compliance with international law by a State that does not bow to political pressure. In our opinion, the ones who should be judged in this situation are the ICC officials who have descended all the way into corruption and politicization, violating not only the norms of international law but even its own Statute. By violating the norms of customary international law on immunities, the ICC is in fact attacking everything that the immunities are designed to safeguard and guarantee, namely, the fundamental principles of sovereign equality, non-interference in internal affairs and political independence.

If such violations are not decisively rebuffed, the collective West will continue to use the ICC to exert control over and to restrict international relations of developing countries. This has nothing to do with justice or the fight against impunity because the interests of the major Western actors, primarily the United States and the United

Kingdom, are protected by hundreds of bilateral agreements on the non-surrender of persons under article 98, paragraph 2, of the Statute.

We also cannot fail to mention the fact that all key posts in the ICC are held by citizens of Western countries, which also control its budget and shamelessly pay for commissioned investigations, funnelling millions of dollars to them in the guise of supposedly voluntary contributions. When the ICC was just created, expectations were high. This is evidenced by the text of the resolution before us today, which is currently completely detached from reality. Endless scandals, corruption, double standards, politicization and inefficiency are what the ICC represents today, not to mention the fixation of ICC officials on issues in Africa, which has led to the adoption of an entire strategy under the auspices of the African Union for countries of this region to withdraw from the Rome Statute. The ICC has destroyed its own reputation. Today the ICC is nothing more than a political instrument, and it is an instrument of the collective West.

As we have already noted, the ICC has nothing to do with justice. We call on all members of the international community to fight against the dictates of the collective West and throw off the shackles of this puppet-like pseudo-court. The continued relationship between the United Nations and such a body is not in the interest of the United Nations. By grossly violating the rules and norms on immunities, this so-called Court is violating key principles enshrined in the Charter of the United Nations: sovereign equality, political independence and non-intervention in the internal affairs of countries. The draft resolution under consideration today is harmful to the United Nations, to the principles of universality and multilateralism. Such a document cannot be supported.

We demand that this draft resolution be put to the vote, and we call upon all members of the international community who respect the Charter and the principles and norms of international law to vote against it.

The Acting President: We have heard the last speaker in the debate on this item. We shall now proceed to consider draft resolution A/79/L.8.

Ms. Emelina-Sarte (Department for General Assembly and Conference Management): I should like to announce that, since the submission of the draft resolution, and in addition to the delegations listed on the document, the following countries have also become sponsors of draft resolution A/79/L.8: Andorra, Argentina, Armenia, Australia, Bangladesh, Barbados, Belize, the Congo, Croatia, the Democratic Republic of the Congo, the Dominican Republic, Gabon, Ghana, Hungary, Jordan, Lesotho, Namibia, Peru, the Republic of Moldova, Saint Kitts and Nevis, Samoa, Sierra Leone, South Africa, Suriname, Sweden, Trinidad and Tobago, Ukraine, the United Republic of Tanzania, Uruguay and Zambia.

The Acting President: Before giving the floor for explanations of votes before the voting, may I remind delegations that explanations of vote are limited to 10 minutes and should be made by delegations from their seats.

Mrs. Llano (Nicaragua) (*spoke in Spanish*): As we all know, the International Criminal Court has shown itself to be selective and politicized and to employ double standards. This does not complement an impartial system of international justice or national systems of justice. Owing to this politicization and selectivity, many countries are not States Parties to the Rome Statute, which established the International Criminal Court. Therefore, the Court has no jurisdiction over countries that do not recognize it and are not Party to it. The Court does not enjoy the consensus of the entire international community. The negative precedent set by the decisions of the International Criminal Court to initiate judicial proceedings against nationals of States that are not Party to the Rome Statute is worrying.

We call for a multipolar world that is free of neocolonial, imperial and fascist impositions, a world rooted in the defence of international law and the Charter of the United Nations — a world that deepens relations of harmony and concord with respect for our sovereignty, independence and self-determination. We have witnessed how Western countries have used and abused the Court to justify and impose a type of biased and selective justice that promotes their political agendas for the benefit of their own geopolitical, economic and military interests. In application of their double standards, they do not accept responsibility for the wars and crimes of their historical policies of imperial domination, colonialism and neocolonialism, whether it be the ongoing genocide against the heroic Palestinian people or the negative impacts of the illegal unilateral coercive measures on more than a third of humankind.

The International Criminal Court contravenes the principles of equal sovereignty and non-interference in the internal affairs of States, which does not contribute to the eradication of poverty, the sustainable development of peoples, or international peace and security. For all these reasons, Nicaragua will vote against draft resolution A/79/L.8.

The Acting President: We have heard the only speaker in explanation of vote before the voting.

The Assembly will now take a decision on draft resolution A/79/L.8, entitled "Report of the International Criminal Court".

A recorded vote has been requested.

A recorded vote was taken.

In favour:

Albania, Andorra, Antigua and Barbuda, Argentina, Armenia, Australia, Austria, Bangladesh, Barbados, Belgium, Belize, Bosnia and Herzegovina, Brazil, Bulgaria, Cabo Verde, Cambodia, Canada, Central African Republic, Chad, Chile, Colombia, Comoros, Congo, Costa Rica, Croatia, Cyprus, Czechia, Democratic Republic of the Congo, Denmark, Djibouti, Dominican Republic, Ecuador, El Salvador, Estonia, Fiji, Finland, France, Gabon, Gambia, Georgia, Germany, Ghana, Greece, Guatemala, Guinea, Guyana, Haiti, Honduras, Hungary, Iceland, Ireland, Italy, Japan, Jordan, Kenya, Kiribati, Latvia, Lesotho, Liechtenstein, Lithuania, Luxembourg, Madagascar, Maldives, Malta, Marshall Islands, Mauritius, Mexico, Micronesia (Federated States of), Monaco, Mongolia, Montenegro, Myanmar, Namibia, Netherlands (Kingdom of the), New Zealand, Nigeria, North Macedonia, Norway, Palau, Panama, Paraguay, Peru, Poland, Portugal, Republic of Korea, Republic of Moldova, Romania, Saint Kitts and Nevis, Saint Lucia, Samoa, San Marino, Senegal, Seychelles, Sierra Leone, Slovakia, Slovenia, South Africa, Spain, Suriname, Sweden, Switzerland, Thailand, Timor-Leste, Trinidad and Tobago, Tunisia, Uganda, Ukraine, United Kingdom of Great Britain and Northern Ireland, United Republic of Tanzania, United States of America, Uruguay, Vanuatu, Zambia

Against:

Belarus, Burkina Faso, Burundi, Democratic People's Republic of Korea, Mali, Nicaragua, Niger, Russian Federation, Sudan, Syrian Arab Republic

Abstaining:

Algeria, Bahrain, Bolivia (Plurinational State of), Brunei Darussalam, China, Côte d'Ivoire, Cuba, Egypt, Eritrea, India, Indonesia, Iran (Islamic Republic of),

Iraq, Israel, Kuwait, Lao People's Democratic Republic, Lebanon, Libya, Malaysia, Mozambique, Oman, Pakistan, Philippines, Qatar, Saudi Arabia, Singapore, Sri Lanka, United Arab Emirates, Viet Nam, Yemen

Draft resolution was adopted by 113 votes to 10, with 30 abstentions (resolution 79/6).

[Subsequently the delegation of the Sudan informed the Secretariat that it had intended to abstain.]

The Acting President: Before giving the floor for explanations of votes after the voting, may I remind delegations that explanations of vote are limited to 10 minutes and should be made by delegations from their seats.

Mr. Evseenko (Belarus) (*spoke in Russian*): In recent years, the International Criminal Court (ICC) has become a hostage of the blatant patronage of Western States, which have been openly influencing its rulings in order to exert pressure on Governments that are inconvenient to the West and are capable of pursuing independent foreign policies.

Lithuania's recent actions demonstrate the abuse of ICC procedures for the purpose of exerting political pressure on neighbouring States, interfering in their domestic and external affairs under fabricated pretexts. The current practice of arbitrarily expanding the Court's jurisdiction is unacceptable because it violates the principles of sovereign equality and the political independence of States, leading to the manipulation of the Court's authority for purely political purposes through the use of double standards.

Given the politicized nature of the ICC and the double standards it employs, we had to vote against resolution 79/6. The practice of using double standards is justified today, inter alia, through the General Assembly resolution on the Court's report (see A/79/198).

Mrs. Rangasamy (India): The new addition at the end of paragraph 11 of the resolution invites States that are not Parties to consider further facilitating cooperation with the Court. With the increased politicization and arbitrariness of the Court, we feel that non-States Parties are expected to put in place proper procedures by means of a resolution.

Hence, my delegation formally abstained in the voting on resolution 79/6, which seeks to impose obligations on the States that are not Parties to the Rome Statute.

The Acting President: We have heard the last speaker in explanation of vote after the voting.

The exercise of the right of reply has been requested. May I remind Members that statements in exercise of the right of reply are limited to 10 minutes for the first intervention and five minutes for the second intervention and should be made by delegations from their seats.

Mr. Paulauskas (Lithuania): This is with regard to the statement of the representative of the Republic of Belarus.

Of course, Lithuania voted in favour of resolution 79/6, and I would like to state the following in that regard.

While the Republic of Belarus is not a State Party to the International Criminal Court (ICC), the Court may exercise its jurisdiction if at least part of the conduct takes place in the territory of the State Party — in this case, victims crossing into the

territories of Lithuania and other States Parties as a result of expulsion or other coercive acts and/or other related crimes.

That is my statement in response to the accusation from Belarus that Lithuania is politicizing the ICC as an instrument.

Mr. Evseenko (Belarus) (*spoke in Russian*): Belarus is compelled to respond to the latest anti-Belarusian action by the outgoing Government of Lithuania.

It is absolutely clear that these accusations regarding the approach to the International Criminal Court are absurd and fabricated. There is no need for comment, but what is important is that this step, along with the spate of hasty and unfriendly actions already undertaken, further distances Lithuanians from Belarusians. This is not helping to facilitate the friendly relations and trust that has existed among our peoples for centuries.

Once again, we emphasize that the freezing of economic contacts, the cessation of joint social projects and, in general, Vilnius's course of confrontation, will lead to a grave error. It will be extremely difficult to restore previous human relations. We continue to remain interested in equitable dialogue with our neighbour Lithuania. We call for Lithuania to abandon its policy of pressure and to restore relations.

Mr. Paulauskas (Lithuania): I will again state that Lithuania has referred the matter to the International Criminal Court, as the crimes against humanity being committed against civilians in Belarus constitute a grave matter of international concern, requiring a response from the international community at large.

Many thousands of victims of the Belarusian regime are present in neighbouring countries, including Lithuania, and have been given sanctuary there. Both they and their families remain at risk. The matter is of the utmost urgency because the commission of crimes is ongoing. The likelihood of irreparable harm to victims is very high, and the timely documentation and preservation of the evidence has to occur now in order to ensure that future evidence and investigations can be conducted and that perpetrators can be apprehended.

The Acting President: We have heard the last statement in exercise of the right of reply.

May I take it that it is the wish of the Assembly to conclude its consideration of agenda item 74?

It was so decided.

Agenda item 73 (*continued*)

Report of the International Court of Justice

Report of the International Court of Justice (A/79/4)

Report of the Secretary-General (A/79/314)

Mr. Montalvo Sosa (Ecuador) (*spoke in Spanish*): I would like to thank Judge Salam for presenting the report (A/79/4) covering the latest period (see A/79/PV.24), and I congratulate him on his election as President of the International Court of Justice.

I would like to begin my statement by emphasizing the importance that Ecuador places on the work of the Court for its contribution to the realization of the purposes and principles of the United Nations, which are being put to the test with increasing frequency.

My country acknowledges and supports the vital role that the Court plays in maintaining international peace and security through the peaceful resolution of

disputes. I also highlight the Court's ability to issue advisory opinions, which, although not binding, do offer clear guidelines on the rules of international law that are applicable to a given situation.

Ecuador is therefore pleased to have submitted a written statement in response to the request for an advisory opinion on the obligations of States in relation to climate change. This opinion has attracted worldwide interest owing to the legal guidelines it may establish. The geographic diversity of the States that turn to the Court to resolve their differences, as well as the increase in, and variety of, the issues heard demonstrate the credibility that Member States have vested in the Court and illustrate the universal nature of its jurisdiction and the importance of its role in defending the rule of law.

Ecuador has a long tradition of resolving disputes peacefully, and we have full confidence in the integrity, impartiality and independence of the Court to resolve disputes between States. For this reason, Ecuador initiated proceedings against Mexico for failing to comply with its international obligations by providing protection, in its embassy in Quito, to a common criminal convicted of corruption-related crimes and attempting to grant him illegal asylum.

My country calls for continued efforts to increase the diversity of the members of the Court and its staff, including in terms of gender, nationality and geographic representation. Ecuador also stresses the importance of strengthening capacity-building programmes, such as the Judicial Fellowship Programme.

In conclusion, I would like to thank the Court and its staff for serving the international community, promoting the rule of law and continuing to highlight the need for all States to act in accordance with their obligations under international law.

Mr. Al Shehhi (Oman) (*spoke in Arabic*): At the outset, I would like to express our appreciation to the Secretary-General for his report (A/79/314) and to the President of the International Court of Justice for his comprehensive briefing on the activities of the Court during the reporting period (A/79/4).

My delegation aligns itself with the statements delivered, respectively, on behalf of the Gulf Cooperation Council, the Group of Arab States and the Movement of Non-Aligned Countries.

We reaffirm our principled position on the need for the peaceful resolution of disputes and the non-use or threat of use of force, as set out in the Charter of the United Nations, in conformity with the principles of the United Nations.

As part of the efforts to strengthen the relationship between United Nations organs, especially the General Assembly and the International Court of Justice, it is customary for the General Assembly to review the annual report of the Court to allow Member States to discuss the work of the Court and the issues of concern to them.

We have also seen a number of countries that have continued to submit their disputes to the Court after they have recognized and accepted its jurisdiction. In this regard, the Sultanate of Oman has followed up on the opinion issued by the International Court of Justice on 19 July, following a request from the General Assembly for an advisory opinion on Israeli practices that impact the human rights of the Palestinian people in the Occupied Palestinian Territories, including East Jerusalem.

The Court reaffirmed the illegality of Israeli practices in the occupied territories and reaffirmed the Palestinian people's right to self-determination. This is an important step in the promotion of the Palestinian cause. While welcoming the Court's opinion on the legal consequences of the practices of the occupying Power, the

Sultanate of Oman renews our call to the international community to implement international resolutions and conventions that call for an immediate end to the illegitimate occupation of the occupied territories and the cessation of settlement activity and the cycle of violence in the Palestinian territories.

The Sultanate of Oman also welcomes resolution ES-10/24, on the advisory opinion issued by the International Court of Justice on the legal consequences of Israeli policies and practices in the Occupied Palestinian Territories, including East Jerusalem. We believe that this resolution is a pivotal step in supporting the inalienable rights of the Palestinian people, foremost of which is their right to self-determination and to the establishment of their independent State along the 1967 borders, with East Jerusalem as its capital.

We also reaffirm the need for the international community to adhere to the principles of international law and relevant United Nations resolutions that contribute to ending the Israeli occupation and achieving a just and comprehensive peace in the Middle East. Furthermore, we followed the Court's decision on the case of genocide charges against Israel and call on the judge to impose additional emergency measures for the immediate cessation of military operations in Rafah, to order Israel to allow for the delivery of humanitarian assistance and for investigative committees to enter the Gaza Strip.

While welcoming the Court's decision in this regard, the Sultanate of Oman calls on the international community, especially the Security Council, to compel Israel to fulfil its responsibilities under international law and implement the decision of the International Court of Justice for Israel to immediately cease its acts of aggression in the Palestinian territory.

The Sultanate of Oman affirms its commitment to the principles embodied in the Charter, namely respect for international norms and law, non-interference in the internal affairs of States, the peaceful settlement of disputes between States, the prevention of the use or threat of use of force and the promotion of cooperation and dialogue among States. It is our conviction that resolving disputes in a spirit of conciliation and tolerance is a civilized approach that leads to better and more lasting results than can be achieved through the path of conflict.

In conclusion, we commend the pivotal and important role played by the International Court of Justice in promoting the peaceful settlement and resolution of disputes in accordance with the provisions and principles of the Charter of the United Nations.

I would like to reaffirm the position of the Sultanate of Oman to support the Court in upholding the provisions of international law and the established principles of the Charter of the United Nations. We also support the Court's role in strengthening relations between various United Nations organs, in particular the International Court of Justice, as the principal legal organ of the Organization.

Mr. Margaryan (Armenia): I would like to thank the President of the International Court of Justice for presenting a detailed overview of the work of the Court last week (see A/79/PV.24). The report on the work of the International Court of Justice (A/79/4) demonstrates a growing increase in the number of cases brought before the Court. The steady increase in the workload reflects the growing trust that Member States place in the Court to adjudicate complex and sensitive questions. It also highlights its critical role as a mechanism for upholding international obligations and promoting peaceful and just dispute resolution.

Beyond its essential function of dispute adjudication, the International Court of Justice plays a pivotal role in shaping the development of international law. The

decisions of the Court are meant to reinforce justice and accountability, as they also establish key precedents that shape future international conduct. The impartiality of the Court is fundamental to its authority and to the integrity and credibility of international law.

In the face of the growing volume and severity of the violations of international law, the Court's role is more critical than ever. The ongoing strains on the multilateral system continue to expose its limitations of action and ability to act upon such pervasive violations and deliver adequate responses. In this regard, reinforcing the Court's capacity will be critical to enabling the Court to address the expanding scope of issues referred to it and to deliver justice.

We remain deeply concerned about the challenges posed by those who choose to disregard the Court's decisions and orders, including the provisional measures issued by the Court, which are legally binding and crucial for addressing urgent situations.

Adherence to the rulings of the International Court of Justice is not simply a matter of fulfilling legal obligations. It is a clear demonstration of commitment to resolve disputes through lawful means. It is imperative that all rulings of the International Court of Justice be upheld and respected so as to ensure that international justice remains a cornerstone for global peace and stability. Conversely, failure to do so serves only to undermine the credibility of the entire international legal system and constitutes a direct assault on the very foundations of justice.

The Charter of the United Nations defines the International Court of Justice as one of its principal organs. As the highest judicial body of the Organization, the International Court of Justice embodies the ideals of justice and equality for nations large and small. Upholding the principles of the Charter, of which the International Court of Justice Statute is an integral part, is essential to advancing peace, development and human rights.

Mr. Prabowo (Indonesia): Indonesia aligns itself with the statements delivered by the representative of Uganda on behalf of the Movement of Non-Aligned Countries and by the representative of Vanuatu on behalf of a group of States (see A/79/PV.25).

We thank Judge Nawaf Salam, President of the International Court of Justice, for presenting the report (A/79/4) in the Assembly (see A/79/PV.24).

It is indeed heartening to observe the Court's exceptionally high level of activity during the reporting period, not only in terms of the number but also the geographical diversity and the range of issues addressed. This reflects the recognition of the Court's capacity to tackle critical international concerns, along with the growing trust and confidence by States.

Such achievements notwithstanding, we must also be mindful of an alarming trend in which the world seems to be descending into an international law abyss. International law and international humanitarian law are increasingly being ignored, while impunity is enabled by a double standard. It is indeed troubling that some of those we regard as the founders of the United Nations and its judicial system are failing to demonstrate the commitment to upholding international law that we expect from them.

In this regard, allow me to convey three points.

First, we must uphold the sanctity of international law as the cornerstone of peace. This is our obligation under the Charter of the United Nations. Part and parcel to this is upholding the principles of international law concerning friendly relations and cooperation among States.

Secondly, the Court must firmly stand as the beacon of justice. It must always uphold its judicial independence and integrity by issuing rulings grounded in fairness and justice. It should also be responsive to emerging challenges, ensuring that international law remains relevant and that justice is delivered. We welcome the fact that the world has once again reaffirmed its support to the International Court of Justice through the Pact for the Future (resolution 79/1), which pledges to uphold the mandate of and comply with the decisions of the International Court of Justice. We also commend the Court for its advisory opinion of 19 July concerning the *Legal Consequences arising from the Policies and Practices of Israel in the Occupied Palestinian Territory, including East Jerusalem* (see A/78/968). The Court has determined that Israel's occupation is illegal and must cease. The two-State solution remains the only viable path to achieving peace between Palestine and Israel. Indonesia will also closely follow the Court's other cases and advisory opinion proceedings, including on the *Application of the Convention on the Prevention and Punishment of the Crime of Genocide in the Gaza Strip (South Africa v. Israel)*. And we look forward to effective implementation of the preliminary measures, along with the advisory opinions on the obligations of States in respect of climate change.

Thirdly, in order for the Court to be a true beacon for inclusive justice, the Court needs to accommodate reasonable requests of States, particularly developing States, to participate in all phases of the Court's proceedings. The active participation of States in the Court's proceedings will reflect the Court's success in safeguarding international law.

Finally, Indonesia remains firm in upholding our collective duty to empower and support the Court in carrying out its mandate. Expectations are high that the world's Court will remain the Court of conscience.

Mr. Ndoye (Senegal) (*spoke in French*): At the outset, allow me to take this opportunity to thank President Nawaf Salam for the detailed and comprehensive presentation of the report (A/79/4) on the activities of the International Court of Justice (see A/79/PV.24) and, through him, express my country's gratitude to all those who contribute on a daily basis to the success of the Court's operations. I would like to take this opportunity to warmly congratulate Mr. Nawaf Salam on his appointment by his peers, on 6 February, as President of the International Court of Justice and to wish him every success in the exercise of his duties. I would also like to commend the efforts of the Secretary-General to advance the peaceful resolution of international disputes, specifically through the report A/79/314, on the trust fund to assist States in the settlement of disputes through the International Court of Justice.

My delegation supports the statement delivered by the representative of Uganda on behalf of the Movement of Non-Aligned Countries (see A/79/PV.25). We wish to make the following remarks in our national capacity.

The judicial activities of the Court, as described in the report A/79/4, currently under consideration, reflect a marked increase in the number of judgments on the merits and incidental proceedings, not to mention a growing diversity of cases. While the number and importance of these cases demonstrate the preference given by Member States to the principal judicial organ of the United Nations for the peaceful settlement of disputes in accordance with international law, the diversity in terms of geographical distribution illustrates the universal nature of the Court's jurisdiction.

Furthermore, it is clear that, in addition to traditional disputes, generally concerning territorial sovereignty or the delineation of maritime boundaries, the Court is increasingly seized of disputes that are related to very diverse issues, such as the jurisdictional immunity of a State; the interpretation and application of international conventions concerning, in particular, diplomatic relations; the elimination of racial

discrimination; the prevention of genocide; the suppression of the financing of terrorism; the prohibition of torture and other cruel, inhumane or degrading treatment or punishment; civil aviation safety and the protection of the environment.

Senegal, which has made the rule of law the cornerstone of its domestic and foreign policy, remains convinced that the increasing number and diversity of issues brought to the International Court of Justice is a source of the legal security for the world. Indeed, we can legitimately ask ourselves what the world would look like if all of the disputes mentioned in the report were subject to the law of the strongest or resolved with weapons. In this regard, my delegation profoundly believes that multilateralism, which has been gravely imperilled, remains the best means of safeguarding international peace and security.

The Court's contribution to the quest for international peace and security is well established. In the light of its crucial role in the peaceful resolution of international disputes, the Court has become a key player in the advancement of the rule of law at the international level.

Senegal therefore invites all Member States to examine ways for the international community to strengthen its commitment to the advancement of the rule of law at the international level, as well as the primacy of international law. This is a prerequisite for a more just and more equitable world, ensuring peaceful relations among States and consolidating the three pillars of the United Nations, namely, international peace and security, development and human rights.

My delegation welcomes the fact that more than 300 bilateral and multilateral treaties currently provide for the jurisdiction of the Court over various disputes among Member States.

It must acknowledged that the International Court of Justice is currently facing a major challenge that may jeopardize its effectiveness and efficiency in advancing and establishing of the rule of law throughout the world. The question of the good faith implementation of its rulings is a pressing concern.

Senegal reiterates its commitment to the implementation of rulings handed down by the International Court of Justice. The execution of the Court's judgments and orders is a legal obligation. It is binding upon all parties to a dispute once they accept its jurisdiction. This obligation is also set out in Article 94, paragraph 1, of the Charter of the United Nations:

> "Each Member of the United Nations undertakes to comply with the decision of the International Court of Justice in any case to which it is a party."

In this regard, my delegation voices its deep concern about the fact that binding decisions of the International Court of Justice are not being implemented. We call on the Member States concerned to honour their obligations under the Charter of the United Nations.

Clearly, the refusal of a Member State to implement the decisions of a Court in certain cases poses a genuine threat to international peace and security. Senegal believes that the absence of a direct mechanism to ensure the implementation of binding decisions of the Court cannot exempt Member States from their treaty obligations.

We firmly believe that the effectiveness of the Court depends largely on the will of Member States to recognize its jurisdiction and accepting its authority. We therefore regret that less than half of United Nations Member States have made a declaration recognizing the compulsory jurisdiction of the Court.

As the report under consideration rightly stressed, only 74 States Parties to the Statute have, to date, made a declaration recognizing as compulsory the jurisdiction of the Court, as contemplated in article 36, paragraphs 2 and 5, of the Statute. A certain number of Member States have included reservations in their declarations of compulsory jurisdiction. In this regard, we call on all States who have not yet done so to consider accepting the compulsory jurisdiction of the Court in accordance with resolution 78/112, of 7 December 2023, entitled “The rule of law at the national and international levels”.

My country attaches particular importance to the Judicial Fellowship Programme, the objective of which is to help young people, in particular those from developing countries, to gain a better understanding of international law by granting fellowship awards. This includes covering the financial costs for the participation of law graduates from universities in developing countries in this Programme. My delegation reiterates its call for Member States and international financial institutions to contribute to the special trust fund in order to enhance the geographical and linguistic diversity of participants in the Programme.

In conclusion, my delegation reiterates its support for the International Court of Justice, whose noble mission and crucial and universal objective require it to take into consideration all the legal systems of the world in its work. We invite the Security Council, pursuant to Article 94 of the Charter of the United Nations, to ensure respect for and the implementation of the rulings of the International Court of Justice, so that the force of law is not replaced by the law of force, which is a genuine threat to international peace and security.

Mrs. Lora-Santos (Philippines): The Philippines thanks His Excellency Judge Nawaf Salam, President of the International Court of Justice, for the presentation of his important report (A/79/4) in the Assembly (see A/79/PV.24).

We align ourselves with the statement delivered by the representative of Uganda on behalf of the Movement of Non-Aligned Countries (see A/79/PV.25).

The Court is an integral part of the United Nations architecture on the maintenance of international peace and security. It is critical to the fulfilment of our preparatory duty under the Charter of the United Nations to bring about by peaceful means and in conformity with the principles of justice and international law the adjustment or settlement of international disputes or situations that might lead to a breach of the peace. The 1982 Manila Declaration on the Peaceful Settlement of International Disputes asserts the same commitment. The Declaration significantly holds special regard for the Court, reaffirming its role as the principal judicial organ of the United Nations. It encourages resort to the Court in the peaceful settlement of disputes.

The world Court is a cornerstone of the international legal order. During the relevant period covered by the report, the Court experienced a high level of activity and productivity. As noted by President Salam in his presentation, the Court’s docket has remained full, with 23 active cases. Overall, 134 States were involved in contentious or advisory proceedings before the Court. Before the Court are issues on territorial and maritime delimitation, human rights, reparation for internationally wrongful acts, environmental protection, the interpretation and application of international treaties concerning, inter alia, the elimination of racial discrimination; the prevention of genocide; the suppression of the financing of terrorism; and the prohibition of torture and other cruel, inhuman or degrading treatment or punishment.

The geographic spread and the diversity of the subject matter of cases before the Court indeed illustrate the universal and general character of its jurisdiction. This also underscores what our Foreign Minister, His Excellency Enrique Manalo, said

before this body that: "[t]imes of flux and crises offer opportunities for reinforcing a rules-based international order" (see A/79/PV.15). He stressed that the International Court of Justice, as a principal organ of the United Nations, together with other international, judicial and legal bodies, advances the rule of law. They uphold the primacy of resolving international disputes by peaceful means, not by the threat or use of force.

This unprecedented level of judicial activity reflects a growing trust and confidence but also demands proportionate increase in resources. As noted by President Salam, the sustained increase in workload has placed a strain on the institution's resources. In no uncertain terms, he said, "The situation is no longer sustainable". The Philippines supports the provision of adequate financial resources essential for the Court's discharge of its judicial functions, noting that its work has expanded over time without a proportionate increase in its budget. Early this year, we made the call for Member States' support at a United Nations event, which we had the honour of co-hosting with the Asian-African Legal Consultative Organization, featuring the President and the Registrar of the Court.

The Philippines has recognized the compulsory jurisdiction of the Court since 1972. We renew our call on other States to do the same. The relationship between the Court and the Security Council is fundamental in the maintenance of international peace and security. We urge the Security Council to seriously consider Article 96 of the Charter of the United Nations and make greater use of the Court as a source of advisory opinions and of interpretation of relevant norms of international law.

As co-sponsor of the resolution seeking the Court's advisory opinion on the issue of climate change (resolution 77/276), we are honoured to participate in the historic proceedings on State obligations with respect to climate change. The enormity of the effects of climate change and its impact on all States and peoples is doubtless confirmed by scientific consensus. This paramount concern therefore impels and warrants the exercise of this Court's advisory jurisdiction.

While bearing in mind the resource constraints of the Court, we recognize the value of participation of interested States in the advisory proceedings. This is in line with the common aspiration for the equal and equitable participation of all States in the international legal system.

Beyond the exercise of its judicial and advisory powers, we welcome the Court's role in promoting the rule of law through its academic and public outreach programmes. We highlight the importance of the trust fund for the Judicial Fellowship Programme, which provides financial support to enhance the geographic and linguistic diversity of participants. We are pleased that a Filipino has been granted this Fellowship.

The Philippines joins other States in supporting the world Court and ensuring its durable future, even as we affirm our faith in its role in attaining the cardinal principle of the Charter, the maintenance of international peace and security.

Mr. Al Ajeeli (United Arab Emirates) (*spoke in Arabic*): At the outset, we would like to express our gratitude to Judge Joan Donoghue for her distinguished service over the past 14 years at the International Court of Justice, including her efforts as President of International Court of Justice since 2021. We also extend our heartfelt condolences on the passing of the former judges, Nabil Elaraby, Joe Verhoeven and Vladlen Stepanovich Vereshchetin. Today, we welcome the new President of the Court, Judge Nawaf Salam, along with the newly elected judges this year. We wish them success in their efforts to uphold international law.

The diversity of issues and the wide geographical scope of cases brought before the Court highlight its universal and general character. With the Middle East currently experiencing one of the most severe crises in its modern history, marked by escalating bombings in the Gaza Strip and the expansion of the conflict into Lebanon, along with increasing violations of international law, it is essential to reaffirm the necessity of respecting and applying international law equally to all without selectivity. For this reason, the United Arab Emirates expresses its support for the International Court of Justice as the principal judicial organ of the United Nations for the peaceful settlement of international disputes, in accordance with the principles of justice and international law.

This year, the Court has witnessed an exceptionally high level of activities, both in contentious cases and advisory opinions. My country believes that the advisory functions of the Court have become more important than ever, particularly in these times of growing polarization, which impacts the application of international law. Given the continued injustice faced by the Palestinian people for more than seven decades and the grave situation in the Occupied Palestinian Territories, the United Arab Emirates participated in the advisory proceedings of the Court in 2023 concerning the legal consequences arising from the policies and practices of Israel in the Occupied Palestinian Territory, including East Jerusalem. We submitted a written statement and participated in the oral proceedings in February regarding this advisory opinion (see A/78/968).

In March, the United Arab Emirates joined an unprecedented number of States in submitting written statements and participating in advisory proceedings concerning the obligations of States in respect of climate change. We look forward to the Court's advisory opinion on this matter.

Advisory opinions hold high moral and legal value, as they contribute to clarifying and developing international law. For example, the Court's advisory opinion on the *Legal Consequences of the Separation of the Chagos Archipelago from Mauritius in 1965* helped to advance deadlocked negotiations in addition to its advisory jurisdiction. The contentious jurisdiction of the Court remains of prime importance. My country believes it is unacceptable to ignore the decisions issued by the highest judicial organ of the United Nations, the International Court of Justice, including the provisional measures issued regarding the war in Gaza.

We also appreciate the efforts of the Court in raising awareness of international law and expanding its scope through its publications and reports. We will continue to support the rule of law, respect for the Charter of the United Nations, sovereign equality and territorial integrity, as these are fundamental principles contributing to the maintenance of international peace and security.

In conclusion, the role of the Court has become more important than ever in the settlement of disputes among Member States and the international community as a whole. The United Arab Emirates therefore remains firmly committed to supporting the principles of international law and upholding the values that underpin the international system.

Mrs. Kupradze (Georgia): Let me start by thanking the President of the International Court of Justice, His Excellency Judge Nawaf Salam, for the report presented under agenda item 73 (A/79/4) in the Assembly (see A/79/PV.24) and commend him for his dedicated work.

Today, as the international legal order faces unprecedented challenges from multiple fronts, the effective functioning of international judicial mechanisms, such as the International Court of Justice, is more critical than ever. With rising conflicts and violations of international law, the Court plays a pivotal role in maintaining global

stability by providing a forum for the peaceful resolution of disputes and reinforcing the rule of law.

Georgia places great emphasis on the role of international judicial bodies as pillars of its foreign policy and diplomacy. By actively engaging with institutions such as the International Court of Justice, the European Court of Human Rights and the International Criminal Court, Georgia demonstrates its firm commitment to upholding the rule of law and safeguarding its sovereignty, independence and territorial integrity through legal and peaceful means.

In this respect, let me recall that this year Georgia achieved another significant success in the case of *Application of the International Convention on the Elimination of All Forms of Racial Discrimination (Georgia v. Russian Federation)*, commonly known as the continuous occupation case. The European Court of Human Rights has held Russia fully accountable for egregious human rights violations committed in the context of Russia's unlawful borderization policy, including harassment, detention, assaults and killings of the Georgian population in the occupied territories and along the occupation line. These findings continue the legacy of the Court's 2021 historic judgment in the inter-State case *Application of the International Convention on the Elimination of All Forms of Racial Discrimination (Georgia v. Russian Federation)*. The Strasbourg Court unequivocally confirmed Russia's occupation and effective control over Abkhazia and Tskhinvali regions of Georgia, and its responsibility for heinous human rights violations against civilians and military personnel committed during August 2008 and afterward.

As the report mentions, as of July, 74 States Parties to the Statute have made declarations recognizing as compulsory the jurisdiction of the Court. Georgia, being among the States that have made the same declaration under article 36 of the Statute, without any reservation, believes it is important that States that have not yet done so consider accepting the jurisdiction of the International Court of Justice in accordance with its Statute.

It is laudable that more and more States have sought resolution of their disputes by seizing the International Court of Justice. The Court's universal role and function are well reflected in the present report, which demonstrates the persistent flow of new cases submitted to the Court and the significant number of judgments and orders it delivered during the period under review, involving wide geographical spread of the cases and the diversity of their subject matter.

In these turbulent times, respect for and adherence to the Court's rulings not only uphold justice but also strengthen the foundations of the international legal system. Compliance with the Court's decisions by States is essential to ensure the credibility of, and to prevent the erosion of, norms that have long governed international relations.

Therefore, we reiterate our call on Russia to comply with the provisional measures of the Court, which bind Russia to immediately suspend the military operations that it commenced on 24 February 2022 in the territory of Ukraine.

In conclusion, Georgia reaffirms its steadfast support for the International Court of Justice as a central pillar of the international legal system. By offering a neutral and authoritative forum for addressing the array of disputes, the Court helps to prevent escalation and promotes dialogue and cooperation among States. Its decisions contribute to maintaining international peace and security by ensuring that disputes are resolved through legal means rather than force, reinforcing the global rule of law.

Mr. Mahmoud (Egypt) (*spoke in Arabic*): Egypt aligns itself the statements delivered by the representative of the Islamic Republic of Mauritania on behalf of the

Group of Arab States and by the representative of Uganda on behalf of the Movement of Non-Aligned Countries (see A/79/PV.25). We wish to add the following in our national capacity.

We thank Judge Nawaf Salam, President of the International Court of Justice, for his statement last Thursday (see A/79/PV.24), and we applaud this Arab expert, whom we and every Arab citizen are honoured to have assumed, on behalf of the whole of humankind, the responsibility of leading the principal judicial organ of the United Nations. It is an institution that symbolizes the primacy of the rule of law. It is the bastion of justice and equality in an international community in which interests and power prevail, and which is reeling under political polarization that affects every aspect of the work of the United Nations. In a world plagued by disputes, conflicts and wars, the International Court of Justice remains an enlightened voice of wisdom and justice and a beacon of the principles of fraternity and humanity.

Egypt has carefully studied the report of the International Court of Justice submitted to the General Assembly (A/79/4) and, like the rest of the world, has been following the activities of the Court in the past year, which was a year full of important judgments and advisory opinions. There have been decisions calling for provisional measures to be adopted regarding cases brought before the Court. This reflects the crucial and constructive role of the Court as a critical bedrock of the multipartite system and a principal means for establishing what is right and upholding the rule of law at the international level.

We believe that the upsurge in the cases brought by Member States to the International Court of Justice and the ongoing increase in requests submitted to the Court from United Nations bodies and entities seeking advisory opinions reflect the trust the international community places in the Court and its significant role in the maintenance of international peace and security and for the peaceful resolution of disputes. This is part and parcel of the principal aims of the United Nations.

Over the past year, the Court has dealt with a number of the fundamental principles of international law, which include issues related to the territorial sovereignty of States, delimitation of maritime borders, the fight against terrorism, the immunities of countries in relation to foreign jurisdiction, the protection of human rights, the prevention of genocide and the fight against both corruption and climate change. These issues are all within the purview of the international community and are contributing to the development of the tenets of international law applicable in those areas.

Considering that article 59 of the Statute of the International Court of Justice stipulates that the Court decisions are binding only on Parties of the cases brought before the Court, we are aware of the value of the Court's rulings, decisions and opinions since they embody, and are an expression of, the right side of the law and one of the sources of the provisions of international law, as stipulated in article 38 of the Statute of the International Court of Justice.

This year has seen the advisory opinion issued by the International Court of Justice on the *Legal Consequences arising from the Policies and Practices of Israel in the Occupied Palestinian Territory, including East Jerusalem* (see A/78/968). This advisory opinion is historic by all means. I will not dwell here on the important jurisprudence of the advisory opinion, to which Egypt was a contributor, nor will I dwell on the obligations of States under international law to adopt measures and actions to put an end to this illegal Israeli presence in the West Bank and the Gaza Strip, as well as East Jerusalem, and to end the ongoing occupation of these Palestinian territories. However, I do wish to take this opportunity to shed light on the historic and political value of the advisory opinion. The International Court of

Justice highlighted the truth that is known to all — the truth that the heart of the problem lies in the Israeli occupation, and the source of the suffering and the tragedy experienced in the Middle East lies in the expansionist settlement-related colonizing Israeli project, which is based on the oppression of the Palestinian people and their forced displacement, as well as a control of their territory under an apartheid regime. The bottom line here, which Israel must realize, is that might does not make right, and the only way to guarantee Israel's security and integrity is by ending the occupation, dismantling the settlements, evacuating the settlers and achieving a peace that is based on right, justice and respect for the dignity of the Palestinian people, in order to allow them to exercise their right to self-determination and the establishment of their independent State in all their territory, with East Jerusalem as its capital.

Lastly, I wish once again to reiterate to the President of the International Court of Justice, as well as to all the judges, the Registrar and all its subsidiary bodies, our full respect and high regard for the Court and its role in the advancement of the pillars of peace for the international community, which reinforce the values of right and justice for the benefit of humankind as a whole.

Mrs. Guerra Tamayo (Cuba) (*spoke in Spanish*): Cuba endorses the statement made by the representative of Uganda on behalf of the Movement of Non-Aligned Countries (see A/79/PV.25).

On behalf of the Republic of Cuba, we would like to emphasize the importance of the International Court of Justice as an international jurisdictional organ that resolves, peacefully and in good faith, the most important disputes of the international community, in accordance with international law.

At the same time, we would like to highlight the activities carried out by the International Court of Justice during the period stated in the report, contained in document A/79/4. We appreciate the presentation of the report.

On 21 February 2023, Cuba attended the hearing of the International Court of Justice as part of the process requested by the General Assembly through its resolution 77/247, of 30 December 2022, entitled "Israeli practices affecting the human rights of the Palestinian people in the Occupied Palestinian Territory, including East Jerusalem". This resolution grants a clear mandate to the Court to issue an advisory opinion, in accordance with Article 96 of the Charter of the United Nations and article 65 of the Statute of the Court. Specifically, the Court was requested to rule on the legal consequences that stem from Israel's practices and policies affecting the Palestinian people, including the resulting legal responsibility of all States and the United Nations.

As part of this process, on 25 July 2023, the Republic of Cuba presented a written statement to the Court requesting a clear and direct ruling establishing all the legal consequences arising from the genocide, war crimes and crimes against humanity, including apartheid, which the Palestinian people have for years experienced at the hands of Israel, the occupying Power.

Cuba spares no effort to achieve a comprehensive, just and lasting solution to the Israeli-Palestinian conflict, based on the creation of two States, that would allow the Palestinian people to exercise their right to self-determination and to have an independent and sovereign State within the pre-1967 borders, with East Jerusalem as its capital, and that would also guarantee the right of return for refugees.

Israel's illegal occupation and the continued forced displacement of Palestinians from their own land continue to threaten this long-term aim. That is why, on 21 June 2024, we announced that Cuba will intervene in the contentious proceedings initiated by the Republic of South Africa against the State of Israel before the International

Court of Justice. The Cuban Government made this very important decision in accordance with its firm and sustained commitment to support and contribute, in every possible way, legitimate international efforts to end the genocide being committed against the Palestinian people.

Pursuant to the provisions of article 63 of the Court's Statute and in strict respect for its obligations as a State Party to the Convention on the Prevention and Punishment of the Crime of Genocide, Cuba will exercise its right to present, as a third State, its interpretation of the rules of the Convention, which Israel has flagrantly violated with its actions in the illegally occupied Palestinian territory of the Gaza Strip. The request presented before the principal judicial organ of the United Nations has the main objective of stopping the atrocities against the Palestinian people resulting from the disproportionate and indiscriminate use of force by Israel.

For more than 70 years, the Palestinian people have been denied their right to self-determination and have been subjected to this ongoing policy of genocide, the aim of which is the extermination of their population. This policy has had very tragic moments, such as the current one, in which hundreds of thousands of innocent civilians, including children, women, older persons and humanitarian staff, are cruelly killed.

Genocide, apartheid, forced displacement and collective punishment have no place in the current world. They cannot be tolerated by the international community. Justice, as well as respect for the Charter of the United Nations and international law, must prevail.

Once again, the International Court of Justice will be called upon to contribute with its decisions to international justice and peace. To that end, Cuba legally supports that both Israel and its accomplices must be declared, under the existing international law, responsible for the genocide that the Palestinian people have endured for decades and continue to endure today in a much more severe form. We reaffirm that Cuba will never be among those who are indifferent.

The Acting President: I now give the floor to the observer of the Observer State of Palestine.

Mr. Mansour (State of Palestine): There is no international law-based order without the International Court of Justice. The Court is the principal judicial organ of the United Nations, and one of the main pillars of the post-Second World War order. We rely on the Court, in both its contentious and advisory proceedings, to guide States and the international community as a whole on the basis of the law. Whoever attacks the Court undermines its authority, disregards its determinations and undermines the international law-based order as a whole.

The International Court of Justice, on three occasions, has delivered provisional orders in the case *Application of the Convention on the Prevention and Punishment of the Crime of Genocide in the Gaza Strip (South Africa v. Israel)*. It has done so as it considered that there is a real and imminent risk that irreparable prejudice will be caused to the rights found by the Court to be plausible, including the right of the Palestinians in Gaza to be protected from acts of genocide and related prohibited acts identified in article 3 of the Genocide Convention.

How did Israel respond to these orders? Instead of preventing the commission of acts within the scope of article 2 of the Convention, it intensified their commission. Instead of preventing and punishing public incitement to genocide, its leaders doubled down on their incitement. Instead of taking immediate and effective measures to enable the provision of urgently needed basic services and humanitarian assistance, they denied any such assistance altogether, using starvation as a method of war.

Instead of immediately halting its military offensive and any other action in the Rafah Governorate, it unleashed its killing and destruction machine against all of the Gaza Strip. Instead of maintaining open the Rafah crossing for unhindered provision at scale of urgently needed basic services and humanitarian assistance, it closed it off completely. Instead of ensuring unimpeded access to the Gaza Strip of any commission of inquiry, fact-finding mission or other investigative body mandated by the United Nations to investigate allegations of genocide, it denied entry to any such missions. Instead of taking all necessary and effective measures to ensure, without delay, in full cooperation with the United Nations, the unhindered provision at scale of urgently needed basic services and humanitarian assistance to Palestinians throughout Gaza, it killed and maimed United Nations staff and humanitarians and passed legislation to destroy the ability of the United Nations Relief and Works Agency for Palestine Refugees in the Near East (UNRWA) to provide life-saving assistance to Palestinians in Gaza and to fulfil its General Assembly mandate. In this regard, the General Assembly has to swiftly act to defend UNRWA and those it is meant to serve.

Israel has not only ignored but utterly breached every single part of the binding orders of the International Court of Justice, making sure that what was qualified by the Court as a real and imminent risk has become an undeniable reality: Israel is committing genocide in Gaza. The horrors taking place in northern Gaza, where hundreds of thousands of Palestinians are facing imminent risk of dying as they are besieged, bombed and starved by Israel, constitute a genocide within a genocide, and must be brought to an immediate end before there are no more lives to be saved there.

Complacency, complicity and self-inflicted powerlessness in the face of such atrocities are unacceptable and unforgivable. Each State has the duty to act. The General Assembly, which has already been at the forefront of the international response, has a duty to take further action.

The Court has also provided guidance, upon the request of the Assembly, to the membership and to United Nations bodies regarding Israel's unlawful presence in the Occupied Palestinian Territory, demanding Israel bring to an end to this unlawful presence as rapidly as possible.

The Court defined in no uncertain terms the obligations of Israel and of all States and the United Nations. The General Assembly adopted a resolution (resolution ES-10/24) welcoming this opinion and seeking to ensure compliance with it. We thank all those who supported this endeavour and who voted for this resolution.

We call on all States to review their domestic legislation and policies and to align them with the determinations of the Court. As for the Security Council and the General Assembly, they need to enact further measures in the face of continued non-compliance by Israel. We shall neither relent nor surrender to genocide, colonialism and occupation. Our international law-based order was built to bring them to an end.

In conclusion, a Member State that considers itself above the law will always conduct itself as an outlaw State. It is time to bring Israel's impunity to an end. My people endure in their flesh the cost of this impunity. Israel sits in the Hall while attacking the General Assembly and its Members, the Security Council and its members, the Human Rights Council and its members, the International Court of Justice and its Judges. Israel sits among us while its occupation forces kill, maim, detain and torture United Nations staff, while it attacks United Nations peacekeepers, while it attempts to destroy a United Nations agency, UNRWA, and while it incites sentiment against the Secretary-General and other United Nations figures and bodies.

There are rights and privileges associated with membership, but there are also obligations. Not attacking the very Organization one belongs to is surely one such

obligation — and I am not speaking here of Israel's record of violating the Charter of the United Nations and refusing to implement any United Nations resolutions, whether adopted in the Assembly or the Security Council. Israel has already relinquished its membership, and I call on the General Assembly to simply recognize this reality and give it effect.

The United Nations Charter must prevail. The Geneva Conventions must prevail. The International Court of Justice must prevail. We call on one and all to uphold this international law-based order. There can be no exceptionalism for Israel and no exception for Palestine. There must be one order and one law for the benefit of all.

Mr. Quintana Aranguren (Colombia) (*spoke in Spanish*): I would like to thank the International Court of Justice for its report (A/79/4), which covers the period from 1 August 2023 to 31 July 2024, and particularly President Nawaf Salam for his comprehensive oral presentation (see A/79/PV.24), which demonstrates the willingness of the Court and its personnel to continue to work on pending cases, adapting its procedures and working methods in the light of the challenges posed by the financial constraints and the liquidity crisis that our Organization is experiencing.

In particular, we note that during the period under review, the Court adopted two amendments to its Rules of Court: in October 2023, the Court amended the resolution concerning the Internal Judicial Practice of the Court and the Practice Directions to make the text of their provisions gender inclusive, and, in February 2024, the Court announced the amendment of certain provisions of its rules relating to the incidental proceedings of intervention. These amendments entered into force on 1 June 2024. Colombia welcomes these adjustments, which seek to make the work of the Court more efficient and to incorporate a gender perspective into the rules applicable to the Court. Colombia therefore applauds these steps.

We also highlight that the report shows that the pending contentious cases on the Court's General List involve no fewer than eight States from the Group of Latin American and Caribbean States. This shows the great value that our region places on the Court and its function of carrying out the judicial settlement of disputes, and the trust that our countries have in the Court to resolve disputes that divide us.

Colombia also takes this opportunity to welcome the processes that facilitate training for students and young professionals, including the annual Judicial Fellowship Programme, which allows interested universities to nominate candidates from recent law graduates and sponsor them to continue their training in a professional context at the Court for 10 months, from the beginning of September to June or July of the following year. Colombia hopes that more lawyers from Latin America and the Caribbean, especially Colombia, will take part in these programmes so that the international lawyers litigating before the Court will be more geographically diverse in the not-too-distant future.

Colombia would also like to seize this opportunity to emphasize its long-standing democratic tradition and its respect for international law. In that connection, on 5 April 2024, Colombia presented a declaration of intervention on the case concerning the *Application of the Convention on the Prevention and Punishment of the Crime of Genocide in the Gaza Strip (South Africa v. Israel)*, invoking Article 63 of the Court's Statute. We are pleased to note that several countries from different continents are following in our footsteps and have issued declarations of intervention in this case, which clearly has ramifications that transcend the interests of the parties in the case.

Colombia also took part in the advisory proceedings concerning the *Legal Consequences arising from the Policies and Practices of Israel in the Occupied*

Palestinian Territory, including East Jerusalem, and on the *Right to Strike under ILO Convention No. 87*, and it has been participating in the ongoing process in the advisory opinion on the *Obligations of States in respect of Climate Change*. This intense litigation is due to Colombia's confidence in the Court and its jurisprudence, as well as in the international legal system of which the Court is the guardian.

However, this great confidence that Colombia and other States have placed in the Court to guide our decisions as States in addressing significant common challenges, such as climate change and its devastating effects, or in responding to flagrant violations of the law, such as those committed by Israel against the Palestinian people, must be accompanied by providing the Court with the necessary tools to continue to carry out its functions, despite an unprecedented increase in its judicial activities during the period under review.

In this respect, Colombia believes that the modest budgetary increase the Court is requesting is entirely reasonable. We therefore fully support said request. In that connection, is it really necessary to point out that the Court is one of the five principal organs of the United Nations, yet its budget is less than 1 per cent of the Organization's total budget?

Finally, we would like to once again thank the Court and all of its members, the Registry and its staff for enabling the Court to continue to discharge its functions, as the principal judicial organ of the United Nations, in an exemplary manner, as it has done until now.

Mr. Grech (Malta): Malta aligns itself with the statement delivered on behalf of the European Union (see A/79/PV.25). I will deliver the following remarks in our national capacity.

The International Court of Justice is a pillar of the global architecture of international relations and the maintenance of international peace and security. Its role in maintaining the rule of law is indispensable. Today, the Court is experiencing one of the most dynamic periods in its history. Cases brought before the Court cover a wide range of issues, including territorial and maritime delimitation, human rights, reparations for internationally wrongful acts, environmental protection and the jurisdictional immunity of States.

As highlighted in the Court's annual report (A/79/4), 134 States have been involved in contentious or advisory proceedings before the Court. Moreover, since its creation, 156 out of 193 States have utilized the Court, demonstrating broad participation from all regions of the world. This underscores the vital importance of the principal judicial organ of the United Nations. In this context, the Court must be fully supported and empowered to carry out its functions, reinforcing its status as the highest judicial organ in the world.

This support should further translate into good-faith compliance with the Court's decisions. Such compliance is not just a matter of legal obligation but demonstrates respect for the Charter of the United Nations and the Statute of the International Court of Justice and aligns with global efforts to advance the rule of law. In this regard, Malta joined the cross-regional political commitment advanced by Romania through the declaration on promoting the jurisdiction of the International Court of Justice, aimed at enhancing the recognition of the Court's jurisdiction. In doing so, we reaffirm our commitment to the peaceful settlement of disputes, a principle that lies at the heart of our work as a member of the Security Council.

As a maritime State with deep concerns about the implications of climate change and sea level rise, Malta also joined the landmark consensual decision of the General Assembly in March 2023, requesting an advisory opinion from the Court on the

obligations of States in respect of climate change (resolution 77/276). We look forward to the Court's advisory opinion, which we are confident will bring a significant contribution to the work of the International Law Commission's Study Group on sea-level rise in relation to international law and help States to better fulfil their international obligations.

While the advisory opinions of the Court are not legally binding, their impact cannot be overstated. These opinions provide clarity on the scope of rights, obligations and responsibilities of States and pronounce what international law requires States to do or refrain from doing. Advisory opinions carry great legal weight and moral authority, serving as a tool for preventive diplomacy and the promotion of peace.

In this context, Malta emphasizes the critical importance of complying with the advisory opinion of 19 July 2024 concerning *Legal Consequences arising from the Policies and Practices of Israel in the Occupied Palestinian Territory, including East Jerusalem*. This call has also been made by General Assembly resolution ES-10/24, adopted on 18 September 2024, which outlines the modalities that would ensure that the advisory opinion is fully respected and implemented. It is essential to acknowledge that while cases brought before the Court need to take their due course, in situations where there is an immediate danger to the respective rights of either Party, the Court may consider the indication of provisional measures. Within this context, Malta calls on all parties to implement the binding orders of the Court without unnecessary delay.

Finally, Malta is pleased to learn that, for the 2024–2025 term, the Court's Judicial Fellowship Programme received 131 eligible applications from 83 nominating universities from all over the world. We trust that this programme will enrich the professional development of the next generation of international lawyers and further disseminate the values of international law. Their work will undoubtedly contribute to the continued strength and credibility of the Organization and to the broader cause of the peaceful settlement of disputes.

Mr. Cappon (Israel): The State of Israel is honoured to present its statement regarding this year's annual report of the International Court of Justice (A/79/4), before this forum.

At the outset, we acknowledge the presentation by President Salam of the report of the General Assembly on the Court's activities from 1 August 2023 to 31 July 2024 (see A/79/PV.24). However, we note with regret the unfortunate trend of increasing attempts to exploit the Court's procedure to advance aims that are far removed from the foundation upon which the Court was established.

A year ago, in October 2023, during the Jewish high holiday of Simchat Torah, Israel suffered the worst terror attack in its history. A day of joy and celebration was desecrated and turned into a day of death and bloodshed. While firing rockets throughout Israel's territories, thousands of Hamas terrorists from the Gaza Strip invaded Israel's territory, brutally murdering, in the most abhorrent ways, more than 1,200 people — children, women and men — in a single day. They took more than 250 hostages, 101 of whom still remain captive in Gaza. We demand the immediate and unconditional release of those hostages and urge everyone to do the same.

Since the horrific event one year ago, Israel has been forced to engage in a war it did not want and did not start, on no less than seven fronts, battling to protect itself and its citizens from those who seek its annihilation. Let us be clear: Israel's war is with Hamas, Hizbullah and other terrorist groups that indiscriminately target Israeli civilians. Our war is not with the civilian populations in which these terrorists intentionally embed themselves, proudly declaring their willingness to sacrifice

innocents in order to pursue their violent extremist agendas. While these battles continue and while the State of Israel has had no choice but to exercise its legitimate right and duty to protect itself and its citizens, we are also facing a vicious attack in the political and legal arena.

The State of Israel is a vibrant democracy, with a strong and independent legal system, steadfast in its commitment to the rule of law and international law. The State of Israel therefore recognizes the important role of the International Court of Justice in facilitating the resolution of legal disputes between sovereign States in accordance with international law and the principle of State consent. We also acknowledge the need for the Court's advisory function when exercised in a manner consistent with the Court's Statute. Unfortunately, we have been following with grave concern the growing trends of cynical abuse of international law and the exploitation of its most esteemed institutions, including the Court, by certain actors attempting to advance their narrow political agendas.

Facilitating such exploitation leads to harmful effects, which are already being widely felt outside the halls of the Court. In this regard, the attempts by some States to distort the facts of specific ongoing cases before the Court, such as the *Application of the Convention on the Prevention and Punishment of the Crime of Genocide in the Gaza Strip (South Africa v. Israel)* case, including in this forum, is yet another example of cynical political exploitation of international legal mechanisms. Since this is exactly what has happened over the course of this debate, allow us to set the record straight: there is no genocide in Gaza.

Those who may be characterized as perpetrators of genocidal terrorist acts are the Hamas Nukhba combatants who committed abhorrent atrocities with the clear intention to annihilate the State of Israel. Furthermore, Hamas' leadership openly, proudly and repeatedly declares that, if possible, it will replicate the 7 October massacre, time and again, until it achieves the complete destruction of the State of Israel. That is a genocidal agenda. We must all distinguish between genocidal terrorism and justified legitimate counter-terrorism operations.

The trend of abusing the Court's mechanisms, clearly exemplified in this case, is not only harmful to the State unjustly impugned but affects the entire international community negatively because it ultimately cheapens and even strips fundamental principles and terms of international law from their intended meaning and moral force, with untold damage to the international legal order. Let us be clear: despite the fact that the South Africa case against Israel is baseless, absurd and outrageous, the State of Israel, thus far, has engaged with the Court regarding this case and has complied with the Court's provisional measures. We have done so because we are committed to international law, regardless of our objection to South Africa's abuse of the Court and its provisional measures mechanism.

Similarly, enabling the Court's advisory opinion function to be politically subverted in order to circumvent the requirement of State consent for the resolution of bilateral disputes, contrary to the expressly stipulated mechanisms provided under binding international legal instruments, will not promote international peace and security. Such trends and practices to enable one-sided agendas that ignore the right of both sides to dispute the realities on the ground will only distance parties from the possibility of resolving disputes, setting a dangerous path for the future weaponization and abuse of the international legal system.

Israel recognized the unique role that the Court can and should play in upholding the principles of international law and respects its valuable role in advancing justice. Nonetheless, it is imperative to ensure that the International Court of Justice does not unintentionally open its doors to applications by actors seeking to abuse the

international legal system in order to subvert justice, provoke fear and spread false and misleading narratives. These attempts to abuse and weaponize the Court's procedures over time can only harm the Court's legitimacy and its ability to fulfil its vital functions.

For generations, the international community has worked together to create a strong international legal system that would stand as a beacon of justice and hope. The mission of our generation must be to protect it.

Mr. Tommo Monthe (Cameroon) (*spoke in French*): I thank the President for the opportunity to participate in this debate.

Cameroon aligns itself with the statement delivered by the Republic of Uganda on behalf of the Movement of Non-Aligned Countries (see A/79/PV.25). I wish to add the following remarks for the Assembly's consideration.

My delegation wishes to thank the President of the International Court of Justice, Mr. Nawaf Salam, for presenting the report (A/79/4) on the Court's activities (see A/79/PV.24) The report takes stock of intense activity punctuated by a large number of cases. These cases are diverse, in terms of both international law issues addressed and the parts of the world concerned. This highlights the general and universal competency of the Court.

Cameroon reaffirms its steadfast support for the Court, the role of which in the peaceful settlement of disputes remains critical for the preservation of international peace and security, as well as for the entrenchment of the rule of law. In the same vein, my delegation shares the opinion of the President of the Court that the ongoing flow of new cases brought before the Court and the large number of judgments and orders handed down by the Court during the period under consideration reflect the dynamism of this institution.

My delegation welcomes the actions undertaken to improve the Court's operations through the review of its procedures and working methods and the efforts made to enforce its decisions. Specifically, on the implementation of the Court's decisions, I wish to highlight that in the Pact for the Future (resolution 79/1), recently adopted, Member States recognized the positive role played by the Court in resolving disputes and reaffirmed their obligation to comply with its decisions. That commitment is part of an international context marked by resistance and refusal by certain parties to disputes to fully accept the consequences of the Court's decisions. States are therefore invited to accede to the optional clause of compulsory jurisdiction and to respect the Court's decisions. This, in turn, would enhance the effectiveness of the role of the Court in resolving the disputes before it.

The report presented by the Court's President also informs us about the large number of orders issued on requests for the indication of provisional measures that seek only to protect interests deemed essential. Nevertheless, the sustained indifference shown towards the measures and the refusal to implement them are striking.

Nevertheless, pursuant to the Charter of the United Nations, each member has committed to complying with International Court of Justice decisions in any dispute to which it is a Party. Through various resolutions, the General Assembly has urged States to implement the Court's judgments, in accordance with the Charter.

Without calling into question the necessary primacy of law, my delegation remains convinced that the legal settlement of disputes needs to dovetail with a far broader and more complementary approach that takes into account political settlement as a critical tool for supporting the enforcement of the Court's decisions.

This may be useful in an international context in which the enforcement of the Court's judgments largely depends on the will of States and in which the forced implementation of the Court's judgments, emanating from Security Council resolutions in accordance with the Charter of the United Nations, would not be practical, given the political constraints within that body.

In many regards, resorting to political settlement through cooperation among the parties has provided practical solutions to disputes. The United Nations contribution has therefore been decisive, as the United Nations has frequently supported negotiations and the conclusion of agreements and other frameworks related to the modalities for the implementation of the Court's judgments.

For our part, Cameroon is fully committed to this path for the implementation of the Court's judgment of 10 October 2002, in the case concerning the *Land and Maritime Boundary between Cameroon and Nigeria (Cameroon v. Nigeria: Equatorial Guinea intervening)*. The Assembly will recall that, in June 2006, Cameroon and Nigeria, two brotherly countries linked by history and destiny, signed at the Greentree Foundation Estate, Manhasset, New York, under the aegis of the United Nations a historic agreement setting out the modalities and timeline for the implementation of the 2002 judgment. That process shed light on the commitment and shared ambition of Cameroon and Nigeria, through a concerted and proactive approach, to resolve the dispute between them and respect the law. This case is now in the annals of the United Nations and can serve as a lesson. My country encourages the United Nations to share this experience and stands ready to contribute to this effort.

Cameroon welcomes the Judicial Fellowship Programme of the International Court of Justice, which is very important for building the capacity of nationals from developing countries. Cameroon encourages the Court to administer this Programme on the basis of equitable geographical distribution of candidates.

With regard to the administrative and budgetary issues raised in the report and referred to by the President of the Court, Cameroon is committed, as usual, alongside other countries, to reviewing them with all due consideration within the Fifth Committee and in the light of the report of the Advisory Committee on Administrative and Budgetary Questions and any additional information that may be provided by the Secretary-General and the representatives of the Court.

In conclusion, Cameroon reaffirms its commitment to the peaceful settlement of disputes as one of the principal tenets of the country's foreign policy. We call upon all States to comply with the Court's decisions, to ensure that the rule of law and justice prevail.

The Acting President: We have heard the last speaker in the debate on this item for this meeting. We shall hear the remaining speakers tomorrow, 30 October, at 3 p.m. in the Hall.

The exercise of the right of reply has been requested. May I remind members that statements in the exercise of the right of reply are limited to 10 minutes for the first intervention and to five minutes for the second intervention and should be made by delegations from their seats.

Mrs. Rangasamy (India): A representative, in delivering the statement of one of the Members, has indulged in unwarranted references to the union and territory of Jammu and Kashmir, while discussing the report of the International Court of Justice (A/79/4). That is the persistent effort to mainstream political propaganda and routinely indulge in misinformation at United Nations forums such as this. Every

United Nations body's initiatives, activities and reports are fair game for that cheap political propaganda.

Jammu and Kashmir has been, is and will forever be an inalienable and integral part of India. Repurposing facts and political theories to feed propaganda is a useless and fruitless exercise. The sooner it is understood and the quicker the focus is shifted to the dire economic social conditions of the citizens of that country, the better it is. The report of the International Court of Justice and discussions around it should best be focused on the Court's mandate and activities.

Mrs. Ijaz (Pakistan): My delegation is exercising its right of reply in response to the remarks just made by the Indian delegation. The delegation just said that Jammu and Kashmir is an integral and inalienable part of India. Let us analyse this. That delegation knows all too well that its illegal annexation would never be accepted by the occupied people of Jammu and Kashmir, as it is not an integral part of India. It is a disputed territory, as is evidenced by all United Nations maps and official documents.

Security Council resolution 47 (1948) notes the desire of India and Pakistan, that the question of the accession of Jammu and Kashmir to India or Pakistan should be decided through the democratic method of a free and impartial plebiscite. This call for a plebiscite was reiterated in Security Council resolutions 91 (1951) and 122 (1957), among others, and the resolutions of the United Nations Commission for India and Pakistan, specifically its resolutions of 13 August 1948 and 5 January 1949.

India accepted this decision and is bound to comply with it, in accordance with Article 25 of the Charter of the United Nations. It cannot be wished away by India through legal acrobatics. So much for Jammu and Kashmir being an integral part of India.

Living in this alternate reality, India's attempts to deny its illegal occupation of Jammu and Kashmir is a travesty of history. Only an occupier would oppose the implementation of Security Council resolutions that promise self-determination to the people of the disputed State of Jammu and Kashmir.

If India had any respect for international law and moral courage, it would end its reign of terror, withdraw its troops and let the Kashmiris freely decide their future in accordance with the Security Council resolutions. Considering that actions taken by India in Indian illegally occupied Jammu and Kashmir transgress all limits of legality, human rights and humanitarian norms, the international community must work towards alleviating the suffering of the people of Jammu and Kashmir by granting them their right of self-determination, as enshrined by the Charter of the United Nations, as well as numerous Council resolutions.

The Acting President: The Assembly has thus concluded this stage of its consideration of agenda item 73.

The meeting rose at 6.10 p.m.